

Research question

An owner of real property entered into a five year lease with tenants. The lease was not recorded. Over 2 years later the owner defaulted on its promissory note payments and the beneficiary on a deed of trust foreclosed the property. The beneficiary as new owner filed an unlawful detainer action against the former owner, but did not name the tenants. What rights do the tenants have in defending against eviction?

Washington

Summary

In Washington State, tenants have substantial rights to defend against eviction when a property owner's foreclosure results in a new owner filing unlawful detainer actions against the former owner without naming the tenants as defendants. Under Washington law, tenants in foreclosed properties must receive 60 days' written notice before any removal proceedings can commence (with exceptions for waste or nuisance evictions and when the borrower/grantor remains as a tenant), and the new owner must follow specific statutory notice requirements that distinguish tenant rights from those of former property owners. Tenants can assert multiple defenses, including improper parties, lack of proper notice, absence of landlord-tenant privity with the new owner, and Washington's strict construction of unlawful detainer statutes in favor of tenants. The failure to name tenants as parties and to provide required foreclosure notices creates strong grounds for dismissal of eviction proceedings.

Statutory Framework for Tenant Protection in Foreclosure

Washington provides comprehensive statutory protection for tenants when rental properties are foreclosed. Under RCW 61.24.146, a tenant or subtenant in possession of residential real property at the time of foreclosure sale must be given sixty days' written notice to vacate, with two important exceptions: (1) tenants may still be evicted for waste or nuisance without the 60-day notice requirement, and (2) the protection does not apply if the borrower or grantor remains on the property as a tenant, subtenant, or occupant. [WA ST 61.24.146](#) This statute creates substantial protection for bona fide tenants that exceeds federal minimum requirements and applies regardless of the original lease terms.

The notice requirements are further detailed in RCW 61.24.060, which mandates that purchasers at foreclosure sales provide written notice to all occupants and tenants using substantially prescribed forms. [WA ST 61.24.060](#) The statute requires different treatment for tenants versus non-tenant occupants, specifying that tenants must be

informed they may either receive "a new rental agreement OR give you a written notice to vacate the property in sixty days or more before the end of the monthly rental period." [WA ST 61.24.060](#) This notice must be served by both first-class mail and either certified or registered mail with return receipt requested.

The Washington Residential Landlord-Tenant Act further reinforces these protections. RCW 59.18.290 prohibits landlords from removing tenants "except under a valid court order," and any violation allows tenants to "recover possession of the property or terminate the rental agreement and, in either case, may recover the actual damages sustained." [WA ST 59.18.290](#) These statutory protections create a comprehensive framework that prioritizes tenant stability over expedited property transfers.

Proper Parties Requirements in Unlawful Detainer Actions

Washington law establishes strict requirements regarding who must be named as parties in unlawful detainer actions. In *Daniels v. Ward*, the court addressed whether a subtenant in possession must be named as a defendant when the actual lease tenants are already named as defendants. [Daniels v. Ward, 35 Wash.App. 697 \(1983\)](#) The court held that "Lafitte's Ltd. was not assigned any interest in the premises and was not a party to any lease document. Lafitte's Ltd. was not a necessary party to the action." [Daniels v. Ward, 35 Wash.App. 697 \(1983\)](#) However, this holding must be understood within the context of the court's broader analysis of possession rights.

The court in *Daniels v. Ward* noted that RCW 59.12.060 provides that "no person other than the tenant of the premises, and subtenant, if there be one, in the actual occupation of the premises when the complaint is filed, need be made parties defendant in any proceeding under this chapter." [Daniels v. Ward, 35 Wash.App. 697 \(1983\)](#) The court reasoned that a party need not directly possess the premises to be subject to unlawful detainer proceedings, as RCW 59.12.030 states a tenant "is guilty of unlawful detainer... [w]hen he continues in possession in person or by subtenant" after a breach of the lease. [Daniels v. Ward, 35 Wash.App. 697 \(1983\)](#)

However, the foreclosure context creates a fundamentally different legal relationship. Unlike *Daniels v. Ward*, where the original landlord-tenant relationship remained intact, foreclosure situations involve new owners who have no privity of contract with existing tenants. The lack of a landlord-tenant relationship between foreclosure purchasers and existing tenants until proper procedures are followed creates unique challenges that must be addressed through compliance with specific foreclosure-related tenant protection statutes.

Strict Construction Standard Favoring Tenants

Washington courts apply a strict construction standard that consistently favors tenants in unlawful detainer proceedings. The Washington Supreme Court in *Randy Reynolds & Associates, Inc. v. Harmon* held that "the unlawful detainer statutes are in derogation of the common law and, thus, are strictly construed in favor of the tenant."  [Randy Reynolds & Associates, Inc. v. Harmon, 193 Wash.2d 143 \(2019\)](#) This principle establishes the fundamental interpretive framework that courts must apply when analyzing procedural compliance and tenant rights.

The Court of Appeals in *Hall v. Feigenbaum* applied the established principle that Washington courts require strict compliance with the time and manner requirements for unlawful detainer actions and strictly construe them in favor of the tenant. [Hall v. Feigenbaum, 178 Wash.App. 811 \(2014\)](#) The court emphasized that while superior courts have jurisdiction over unlawful detainer actions, a party filing an action after improper notice may not maintain such action or avail itself of the superior court's jurisdiction. [Hall v. Feigenbaum, 178 Wash.App. 811 \(2014\)](#)

This strict construction standard extends to all procedural requirements, including notice provisions and party identification. In *FPA Crescent Associates, LLC v. Jamie's, LLC*, the court noted that "because unlawful detainer statute curtails application of common law, any ambiguities must be strictly construed in favor of tenant."  [FPA Crescent Associates, LLC v. Jamie's, LLC, 190 Wash.App. 666 \(2015\)](#) This interpretive principle provides strong support for tenant challenges to procedurally defective foreclosure evictions.

Available Defenses for Tenants

Washington law provides tenants with multiple substantive defenses when facing eviction after foreclosure. The Court of Appeals in *Josephinium Associates v. Kahli* established that "The unlawful detainer statute permits a tenant to assert 'any legal or equitable defense or set-off arising out of the tenancy.'"  [Josephinium Associates v. Kahli, 111 Wash.App. 617 \(2002\)](#) The court further held that "To protect the summary nature of the unlawful detainer action, defenses 'arise out of the tenancy' only when they affect the tenant's right of possession or are 'based on facts which excuse a tenant's breach.'"  [Josephinium Associates v. Kahli, 111 Wash.App. 617 \(2002\)](#)

Tenants can assert improper party defenses based on the failure to name them as defendants when they are the actual parties in possession. The lack of proper statutory notice under RCW 61.24.060 and RCW 61.24.146 provides additional grounds for dismissal, as these statutes create mandatory procedural requirements that cannot be waived. Additionally, tenants can challenge the absence of a valid landlord-tenant

relationship with the new owner, as foreclosure alone does not establish the privity necessary for unlawful detainer proceedings.

The Court of Appeals in *River Stone Holdings NW, LLC v. Lopez* confirmed that "as with other types of unlawful-detainer actions, in the foreclosure context unlawful-detainer defendants are limited to raising defenses or counterclaims relating to rightful possession of the property." [River Stone Holdings NW, LLC v. Lopez, 199 Wash.App. 87 \(2017\)](#) However, this limitation works in tenants' favor when the fundamental issue is whether the new owner has followed proper procedures to establish any right to possession against tenants who have not been properly notified or included in proceedings.

Arguments and Rebuttals

Arguments for Tenant Protection

1. Statutory Notice Requirements

- RCW 61.24.146 creates a 60-day notice requirement before tenants can be removed from foreclosed properties (subject to exceptions for waste or nuisance evictions and when borrower/grantor remains as tenant).
- RCW 61.24.060 mandates specific written notice distinguishing tenant rights from those of former property owners.
- Failure to comply with these statutory requirements deprives courts of jurisdiction to issue writs of restitution.

Anticipated Rebuttals

- New owners may argue that filing against the former owner satisfies procedural requirements since tenants are not necessary parties under *Daniels v. Ward*. However, *Daniels* involved ongoing landlord-tenant relationships with the actual lease tenants named as defendants, not foreclosure situations where no privity exists with new owners and tenants are not named at all.

2. Improper Parties and Lack of Privity

- No landlord-tenant relationship exists between foreclosure purchasers and existing tenants until proper procedures are followed.
- RCW 59.12.060 requires tenants in actual occupation to be named as parties in unlawful detainer proceedings.

- Washington's strict construction standard requires compliance with all procedural requirements.

Anticipated Rebuttals

- New owners may claim superior title through foreclosure gives them immediate possession rights. However, Washington's tenant protection statutes specifically limit these rights and require compliance with notice provisions before any eviction proceedings.

3. Strict Construction in Favor of Tenants

- Washington courts "strictly construe" unlawful detainer statutes "in favor of the tenant" as statutes "in derogation of the common law."
- Procedural defects and ambiguities must be resolved in tenants' favor.
- Improper notice prevents courts from exercising jurisdiction over unlawful detainer actions.

Anticipated Rebuttals

- New owners may argue that strict construction should not prevent reasonable enforcement of property rights. However, the legislature has specifically provided comprehensive tenant protection procedures that must be followed, and courts cannot ignore these statutory requirements.

Arguments for New Owner Rights

1. Superior Title Through Foreclosure

- Foreclosure sales convey superior title that extinguishes subordinate interests including tenancies.
- RCW 61.24.060 establishes purchaser's right to possession "on the twentieth day following the sale" against borrowers and junior interest holders.
- Traditional property law principles support new owner possession rights.

Anticipated Rebuttals

- While foreclosure may convey superior title, RCW 61.24.146 specifically protects tenants with 60-day notice requirements (subject to statutory exceptions). Washington has chosen to balance property rights with tenant

protections, and these statutes cannot be circumvented through traditional property law arguments.

2. Adequate Procedural Compliance

- o Filing against the former owner who had original lease obligations satisfies notice requirements.
- o *Daniels v. Ward* establishes that subtenants in possession are not necessary parties when the actual lease tenants are named as defendants.
- o Summary nature of unlawful detainer proceedings supports efficient resolution.

Anticipated Rebuttals

- o *Daniels v. Ward* involved ongoing landlord-tenant relationships with actual lease tenants named as defendants, not foreclosure situations where tenants are not named at all. RCW 61.24.060 and RCW 61.24.146 create specific procedural requirements for foreclosure situations that override general unlawful detainer procedures.

Practical Implications

Tenants facing eviction after foreclosure have multiple practical avenues for protection beyond the immediate unlawful detainer defense. They can challenge the improper party status in unlawful detainer actions filed only against former owners, since they are the actual parties in possession with statutory rights that must be respected. Demanding compliance with the specific notice requirements under RCW 61.24.060 and RCW 61.24.146 provides another strong defense, as these statutes create mandatory procedural steps that cannot be bypassed.

The absence of a valid landlord-tenant relationship with foreclosure purchasers creates additional defensive opportunities, as new owners cannot simply assume the rights and obligations of former landlords without following proper legal procedures. Tenants can also utilize Washington's strong tenant-protective interpretation of unlawful detainer statutes to challenge any procedural irregularities or ambiguous legal positions.

For indigent tenants, RCW 59.18.640 provides the right to appointed counsel in unlawful detainer proceedings, ensuring access to legal representation during these proceedings. Additionally, tenants may seek orders of limited dissemination under RCW 59.18.367 to protect against negative tenant screening reports resulting from improper unlawful detainer actions, preserving their ability to secure future housing.

Recent Developments

Recent Washington cases continue to strengthen tenant protections and clarify procedural requirements in unlawful detainer actions. *Sangha v. Keen* (2025) reinforced that unlawful detainer statutes are "special proceedings" that control over Civil Rules when conflicts arise, emphasizing the primacy of statutory tenant protections. [Sangha v. Keen, 4 Wash.3d 852 \(2025\)](#) *Skinner v. InCity Properties Holdings* (2025) confirmed that tenants retain possession rights even after wrongful self-help evictions, establishing that improper procedures cannot be used to circumvent tenant protections. [Skinner v. InCity Properties Holdings, Inc., 35 Wash.App.2d 436 \(2025\)](#)

Housing Authority of Grant County v. Parker (2023) interpreted RCW 59.18.367(1)(c) to clarify that courts may issue orders limiting dissemination of unlawful detainer records based on "good cause" even when the prior eviction was lawful and the tenancy was not reinstated, if the court finds the eviction does not fairly reflect the risk the tenant poses to future landlords.  [Housing Authority of Grant County v. Parker, 28 Wash.App.2d 335 \(2023\)](#) This development provides additional tools for tenants to protect their housing prospects after facing eviction proceedings.

Related Issues

- Subordination, non-disturbance and attornment agreements (SNDAs) in commercial leases that preserve tenant rights during foreclosure while protecting lender interests
- Federal fair housing discrimination claims under 42 USC 3604 and Washington Law Against Discrimination when foreclosure-related evictions disproportionately impact protected classes
- Consumer Protection Act violations in landlord-tenant relationships, particularly regarding deceptive practices in notice provisions or misrepresentation of tenant rights
- Warranty of habitability claims and rent withholding rights that may provide additional defenses in unlawful detainer actions following foreclosure

Commentary on This Question

When a property is foreclosed upon, tenants with existing leases may have rights to possession despite the change in ownership. Leasehold interests generally survive

foreclosure if the lease was properly recorded or otherwise enforceable against the new owner. However, if the lease is unrecorded, the priority and recognition of the tenancy depend on jurisdictional and procedural nuances. In Washington, unlawful detainer actions focus solely on the immediate right to possession and are summary in nature. Affirmative defenses related to possession may be raised if they directly affect this right. The notion that a new owner must name tenants in an eviction suit resonates with principles of proper notice and due process. Tenants not named and therefore not parties to an unlawful detainer action may face difficulties asserting defense rights in that proceeding directly. However, tenants may assert claims or defenses related to their protected tenancy, such as violations of landlord obligations under federal or state law (e.g., failure to accommodate disabilities), which can impact their right to possession in eviction contexts [RELPM § 38:20](#), [RELPM § 38:21](#).

Tenants who remain after lease expiration without landlord consent typically become tenants at sufferance, giving the new owner the option to treat them as trespassers and pursue eviction [68 AMJUR POF 3d 1](#). Courts emphasize the right to possession as distinct from title, and tenants may raise defenses that negate the landlord's right to possession, including failure to accommodate disability or challenges to proper procedural steps by landlords in eviction actions [LAWDRE § 57:69](#), [RELPM § 38:21](#). Overall, while foreclosure may extinguish the landlord's interest, tenants' possessory rights can survive depending on notice, lease recording, and compliance with statutory procedures for eviction in Washington [RELPM § 38:20](#).

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Sources (19)

1. [61.24.146. Foreclosure of tenant-occupied property--Notice to vacate](#)
WA ST 61.24.146

AI document summary

Requiring sixty days' written notice to tenants before removal from foreclosed residential property, subject to exceptions for waste or nuisance evictions and when borrower/grantor remains as tenant

Supporting section 1 of 1

...(1) A tenant or subtenant in possession of a residential real property at the time the property is sold in foreclosure must be given sixty days' written notice to vacate

before the tenant or subtenant may be removed from the property as prescribed in chapter 59.12 RCW. Notwithstanding the notice requirement in this subsection, a tenant may be evicted for waste or nuisance in an unlawful detainer action under chapter 59.12 RCW....

2. **61.24.060. Rights and remedies of trustee's sale purchaser--Written notice to occupants or tenants**

WA ST 61.24.060

AI document summary

Establishing purchaser possession rights and mandatory notice requirements to tenants and occupants following foreclosure sales

Supporting section 1 of 1

...2. If you are a tenant or subtenant in possession of the property that was purchased, pursuant to RCW 61.24.146, the purchaser at the trustee's sale may either give you a new rental agreement OR give you a written notice to vacate the property in sixty days or more before the end of the monthly rental period."...

3. **59.18.290. Removal or exclusion of tenant from premises--Holding over or excluding landlord from premises after termination date--Attorneys' fees**

WA ST 59.18.290

AI document summary

Prohibiting unlawful removal of tenants and providing remedies for wrongful eviction

Supporting section 1 of 1

...(1) It is unlawful for the landlord to remove or exclude from the premises the tenant thereof except under a court order so authorizing. Any tenant so removed or excluded in violation of this section may recover possession of the property or terminate the rental agreement and, in either case, may recover the actual damages sustained. The prevailing party may recover the costs of suit or arbitration and reasonable attorneys' fees....

4. **Daniels v. Ward**

Court of Appeals of Washington, Division 1. • September 12, 1983 • 35 Wash.App. 697 • 669 P.2d 495

AI document summary

Holding that subtenants in possession are not necessary parties to unlawful detainer actions when actual lease tenants are named as defendants and addressing party requirements

Supporting section 1 of 3

...Subtenant in possession, which was not assigned any interest in premises and was not party to any lease document, was not necessary party to unlawful detainer action. West's RCWA 59.12.060....

Supporting section 2 of 3

...RCW 59.12.060 provides in part: > No person other than the tenant of the premises, and subtenant, if there be one, in the actual occupation of the premises when the complaint is filed, need be made parties defendant in any proceeding under this chapter.....

Supporting section 3 of 3

...A party need not directly possess the premises to be subject to unlawful detainer proceedings....



5. Randy Reynolds & Associates, Inc. v. Harmon

Supreme Court of Washington, En Banc. • March 28, 2019 • 193 Wash.2d 143 • 437 P.3d 677

AI document summary

Establishing that unlawful detainer statutes are in derogation of common law and must be strictly construed in favor of tenants

Supporting section 1 of 1

...The unlawful detainer statutes are in derogation of the common law and, thus, are strictly construed in favor of the tenant....

6. Hall v. Feigenbaum

Court of Appeals of Washington, Division 1. • January 13, 2014 • 178 Wash.App. 811 • 319 P.3d 61

AI document summary

Applying established principles of strict compliance with unlawful detainer procedural requirements

Supporting section 1 of 2

...Washington courts require strict compliance with the time and manner requirements for unlawful detainer actions and strictly construe them in favor of the tenant....

Supporting section 2 of 2

...The state constitution vests the superior court with broad authority over real estate disputes, and the unlawful detainer statute explicitly gives jurisdiction over unlawful detainer actions to the superior court; this jurisdiction remains constant regardless of

procedural missteps by the parties, but a party filing an action after improper notice may not maintain such action or avail itself of the superior court's jurisdiction. West's RCWA Const. Art. 4, S 6; West's RCWA 59.12.050....

7. **FPA Crescent Associates, LLC v. Jamie's, LLC**

Court of Appeals of Washington, Division 3. • October 20, 2015 • 190 Wash.App. 666 • 360 P.3d 934

AI document summary

Holding that unlawful detainer statute ambiguities must be strictly construed in favor of tenants

Supporting section 1 of 1

...Because unlawful detainer statute curtails application of common law, any ambiguities must be strictly construed in favor of tenant. West's RCWA 59.12.030....

8. **Josephinium Associates v. Kahli**

Court of Appeals of Washington, Division 1. • May 06, 2002 • 111 Wash.App. 617 • 45 P.3d 627

AI document summary

Defining permissible tenant defenses in unlawful detainer actions and establishing standards for equitable defenses

9. **River Stone Holdings NW, LLC v. Lopez**

Court of Appeals of Washington, Division 2. • April 25, 2017 • 199 Wash.App. 87 • 395 P.3d 1071

AI document summary

Confirming that unlawful detainer defenses in foreclosure contexts are limited to issues relating to rightful possession

Supporting section 1 of 1

...As with other types of unlawful-detainer actions, in the foreclosure context unlawful-detainer defendants are limited to raising defenses or counterclaims relating to rightful possession of the property. Wash. Rev. Code Ann. S 59.12.030 et seq....

10. **Sangha v. Keen**

Supreme Court of Washington, En Banc. • May 22, 2025 • 4 Wash.3d 852 • 568 P.3d 1118

AI document summary

Establishing that unlawful detainer statutes as "special proceedings" control over Civil Rules when conflicts arise

11. Skinner v. InCity Properties Holdings, Inc.

Court of Appeals of Washington, Division 1. • November 04, 2025 • 35 Wash.App.2d 436 • 580 P.3d 986

AI document summary

Confirming tenant possession rights and remedies against wrongful self-help evictions

12. Housing Authority of Grant County v. Parker

Court of Appeals of Washington, Division 3. • September 21, 2023 • 28 Wash.App.2d 335 • 535 P.3d 516

AI document summary

Interpreting RCW 59.18.367(1)(c) regarding orders of limited dissemination of unlawful detainer records

13. § 38:20. Defaults and other failures to perform obligations—Remedies for defaults—Cancellation of lease—Eviction

Out of plan

Real Estate Leasing Practice Manual • RELPM § 38:20

Supporting section 1 of 2

...Wash. Const. Art. I, § 10; Wash. Rev. Code Ann. §§ 43.06.200(2), 43.06.220, 59.12.030, 59.12.030, 59.18.050, 59.18.080, 59.18.130, 59.18.140(1), 59.18.160(1), 59.18.170, 59.18.410; Gonzales v. Inslee, 2 Wash. 3 d 280, 535 P.3 d 864 (2023), cert. denied, 144 S. Ct. 2685, 219 L. Ed. 2 d 1300 (2024). The legislature has the power (within constitutional limits) to limit, alter, or even completely eliminate unlawful detainer actions. The moratorium on evicting people from their homes for failing to pay rent which the Governor imposed during the COVID-19

Supporting section 2 of 2

...Wash. Const. Art. I, § 10; Wash. Rev. Code Ann. §§ 43.06.200(2), 43.06.220, 59.12.030, 59.12.030, 59.18.050, 59.18.080, 59.18.130, 59.18.140(1), 59.18.160(1), 59.18.170, 59.18.410; Gonzales v. Inslee, 2 Wash. 3 d 280, 535 P.3 d 864 (2023), cert. denied, 144 S. Ct. 2685, 219 L. Ed. 2 d 1300 (2024). The legislature has the power (within constitutional limits) to limit, alter, or even completely eliminate unlawful detainer actions. The moratorium on evicting people from their homes for failing to pay rent which the Governor imposed during the COVID-19

14. § 38:21. Defaults and other failures to perform obligations—Remedies for defaults—Cancellation of lease—Eviction—Cause for eviction

Out of plan

Real Estate Leasing Practice Manual • RELPM § 38:21

Supporting section 1 of 2

...Kiemle & Hagood Company v. Daniels, 26 Wash. App. 2 d 199, 528 P.3 d 834 (Div. 3 2023). 42 U.S.C.A. §§ 3604(f)(2), 3604(f)(3)(B); Wash. Rev. Code Ann. §§ 59.12.040, 59.18.650(6)(a), 49.60.222(1)(f), 49.60.222(2)(b), 59.18.650(2)(c); Kiemle & Hagood Company v. Daniels, 26 Wash. App. 2 d 199, 528 P.3 d 834 (Div. 3 2023). A tenant's claim that a landlord has failed to accommodate their disability in violation of federal and state law may constitute a defense to eviction in forcible entry action and can be asserted so long as failure to accommodate

Supporting section 2 of 2

...Kiemle & Hagood Company v. Daniels, 26 Wash. App. 2 d 199, 528 P.3 d 834 (Div. 3 2023). 42 U.S.C.A. §§ 3604(f)(2), 3604(f)(3)(B); Wash. Rev. Code Ann. §§ 59.12.040, 59.18.650(6)(a), 49.60.222(1)(f), 49.60.222(2)(b), 59.18.650(2)(c); Kiemle & Hagood Company v. Daniels, 26 Wash. App. 2 d 199, 528 P.3 d 834 (Div. 3 2023). A tenant's claim that a landlord has failed to accommodate their disability in violation of federal and state law may constitute a defense to eviction in forcible entry action and can be asserted so long as failure to accommodate

15. Landlord's Recovery of Damages for Tenant's Wrongful Holding Over of Leased Premises

Out of plan

American Jurisprudence Proof of Facts 3d • 68 AMJUR POF 3d 1

Supporting section 1 of 2

...Lessee of laundry rooms in apartment complex became a tenant at sufferance, not a tenant at will, after termination of lease due to foreclosure, since new owner never consented to lessee's continued possession of property; immediately after purchasing the complex, new owner gave lessee written notice to vacate the laundry rooms, never cashed any checks received from lessee, and promptly filed action to evict lessee as well as action in trespass to try title to establish that lessee had no right to possession. Coinmach Corp. v. Aspenwood Apartment

Supporting section 2 of 2

...Pursuant to a covenant express or implied in all leases, a tenant is under a duty to surrender possession of the premises to the landlord upon the expiration or termination of the lease.[1] A tenant's failure or refusal to give up possession at the end of the lease term constitutes a holding over.[2] The length of time of holding over and the intention of the tenant are generally irrelevant.[3] A tenant, who

remains in possession of the premises without consent of the landlord after the termination of his lease, holds the property without the

16. [§ 57:69. Affirmative defenses—Permissible issues](#)

Out of plan

Law of Distressed Real Estate • LAWDRE § 57:69

Supporting section 1 of 1

...If the landlord breaches the implied warranty of habitability, the tenant is allowed to withhold rent; thus, termination based on failure to pay rent would not give the landlord any immediate right to possession.[8] Similarly, a termination of a tenancy based on retaliatory motives is not a valid termination of a lease agreement, and a notice to quit based on such a motive would not give the landlord any right to possession of the premises.[9]...

Additional sources

These sources are not cited in your report, but can provide context that may be helpful.

17. [Residential Foreclosures \(Nonjudicial\) \(WA\)](#)

Practice Note • Law stated as of 31-Dec-2025 • Washington

Practical Law resource summary

A Practice Note discussing the procedures and primary considerations for conducting a nonjudicial foreclosure of a deed of trust secured by residential real property in Washington. This Note also addresses statutory loss mitigation and mediation requirements, appointing a receiver, the borrower's right to reinstate the loan, and tenant notice obligations under Washington law.

18. [Commercial Foreclosures \(Nonjudicial\) \(WA\)](#)

Practice Note • Law stated as of 31-Dec-2025 • Washington

Practical Law resource summary

A Practice Note discussing the procedures and primary considerations for conducting a nonjudicial foreclosure of a deed of trust secured by commercial real property in Washington. This Note also addresses appointing a receiver, the borrower's right to reinstate the loan, and deficiency judgments under Washington law.

19. [Residential Foreclosure \(Judicial\) Checklist \(WA\)](#)

Checklist • Law stated as of 30-May-2025 • Washington

Practical Law resource summary

A Checklist outlining important steps for a lender when preparing for and conducting a judicial foreclosure of a mortgage or deed of trust secured by residential real property in Washington. This Checklist reviews pre-foreclosure requirements and considerations and covers the judicial residential foreclosure process from filing a complaint to obtaining a deficiency judgment.

Cases on Both Sides

The following list contains additional cases found on both sides of your legal issue.

Supporting Tenant Protection Rights	Supporting New Owner Rights
 <u>Randy Reynolds & Associates, Inc. v. Harmon, 193 Wash.2d 143 (2019)</u> The Washington Supreme Court established that unlawful detainer statutes are in derogation of common law and must be strictly construed in favor of tenants. This fundamental interpretive principle applies to all procedural and substantive requirements in unlawful detainer actions.	<u>Selene RMOF II REO Acquisitions II, LLC v. Ward, 189 Wash.2d 72 (2017)</u> The Washington Supreme Court held that a purchaser at a deed of trust foreclosure sale may bring an unlawful detainer action against an occupier of the property under RCW 61.24.060(1). The court emphasized that the Deed of Trust Act was designed to provide an adequate opportunity for notice to interested parties to prevent wrongful foreclosure while allowing the new owner to obtain possession through unlawful detainer proceedings.
<u>River Stone Holdings NW, LLC v. Lopez, 199 Wash.App. 87 (2017)</u> The court confirmed that unlawful detainer actions in foreclosure contexts are limited to defenses relating to rightful possession of property. This limitation supports tenant arguments that procedural defects regarding notice and party identification are central to possession rights.	<u>Way v. Choquer, Not Reported in Pac. Rptr. (2016)</u> The court held that a foreclosure purchaser was not required to provide separate notice under RCW 59.12.040 to a former owner who was not in actual occupation of the property at the time the complaint was filed. The court reasoned that RCW 61.24.040(2) notice requirements for foreclosure purchasers superseded general unlawful detainer notice requirements, and only persons

	in actual occupation need be named as parties defendant.
 <u>FPA Crescent Associates, LLC v. Jamie's, LLC, 190 Wash.App. 666 (2015)</u> The court held that ambiguities in unlawful detainer statutes must be strictly construed in favor of tenants, rejecting landlord attempts to bypass notice requirements.	<u>MHM & F, LLC v. Pryor, 168 Wash.App. 451 (2012)</u> The court held that a landlord-tenant relationship replaced the secured party-debtor relationship when stock associated with leased space was properly sold in foreclosure, establishing the new owner's right to bring an unlawful detainer action. The court reasoned that the foreclosure sale created a new landlord-tenant relationship between the foreclosure purchaser and the occupant.
 <u>Peoples Nat. Bank of Washington v. Birney's Enterprises, Inc., 54 Wash.App. 668 (1989)</u> The court held that a creditor acquiring an interest in property through foreclosure was not a bona fide purchaser and thus took subject to the tenant's right of possession under an unrecorded 20-year lease. The court reasoned that the creditor had a duty to inquire where the tenant's possession was visible and evident, and despite the lease being unrecorded, the tenant's occupancy provided constructive notice that defeated the creditor's bona fide purchaser status.	<u>Walden v. Welch, Not Reported in Pac. Rptr. (2023)</u> The court held that a purchaser at a nonjudicial foreclosure sale may bring an unlawful detainer action to evict the previous owner, and that subsequent purchasers who acquire title via special warranty deed also retain the right to pursue unlawful detainer. The court reasoned that the statutory right to pursue unlawful detainer transfers with the property to subsequent owners.
 <u>Laffranchi v. Lim, 146 Wash.App. 376 (2008)</u> The court held that a purchaser of property at nonjudicial foreclosure sale who brought an unlawful detainer action against former owners but failed to join the tenant as a defendant could not proceed without the tenant being named as a party. The court reasoned that the	<u>Huisingh v. Lawson, Not Reported in Pac. Rptr. (2024)</u> The court held that a purchaser at a deed of trust foreclosure sale may bring an unlawful detainer action to evict the previous owner provided the sale complied with statutory foreclosure rules, and that subsequent conveyees of the purchaser may also pursue such actions. The court reasoned that

tenant's rights and interests required proper joinder in the eviction proceeding.	unlawful detainer actions are not a forum for litigating claims to title.
<u>Watkins v. ESA Management, LLC, 30 Wash.App.2d 916 (2024)</u> The court held that a tenant or subtenant in actual possession of the premises when a complaint is filed is a necessary party who must be joined in order for the action to proceed, citing RCW 59.12.060 and RCW 59.12.090. The court applied the statutory requirement that any tenant or subtenant in actual possession when the complaint is filed must be made a party defendant for the action to have subject matter jurisdiction.	<u>Security Sav. & Loan Soc. v. Dudley, 175 Wash. 50 (1933)</u> The court held that a purchaser at a foreclosure sale was entitled to rents accruing on the mortgaged property during the redemption period, even where an unrecorded lease existed on the property. The court reasoned that the foreclosure sale transferred all interests in the real property, including rights to rents, to the new owner.
<u>Honse v. Clinton, Not Reported in P.3d (2015)</u> The court held that foreclosure purchasers must provide 60 days' written notice to tenants or subtenants in possession of tenant-occupied residential property under RCW 61.24.060(2), and that this requirement applies specifically to persons entitled to occupy a dwelling unit under a rental agreement as defined in RCW 59.18.030(21). The court emphasized that the 60-day notice provision expressly applies to tenants or subtenants in possession of foreclosed property.	 <u>Valentine v. Portland Timber & Land Holding Co., 15 Wash.App. 124 (1976)</u> The court held that the recording statute should protect both the foreclosing mortgagee and the purchaser at a foreclosure sale against unrecorded and unknown interests, cutting off such interests of which there was no actual notice before suit. The court reasoned that public policy favors protecting foreclosure purchasers from unrecorded interests to ensure the validity and marketability of foreclosure sales.
<u>Virges v. E.F. Gregory Co., 97 Wash. 333 (1917)</u> The court held that a foreclosure decree and sale do not terminate a tenant's leasehold interest during the redemption period, and the foreclosure purchaser's rights are subject to the tenant's right to remain in possession upon payment of rent specified in the lease. The court reasoned that the purchaser's certificate	<u>Kezner v. Landover Corp., 87 Wash.App. 458 (1997)</u> The court held that all interests in real property subject to a mortgage or deed of trust pass to the purchaser at foreclosure, including rights to unpaid rent, and the former owner has no interest in unpaid rent if rent was part of the security granted in the deed of trust. The court reasoned that the bundle of

of purchase during redemption confers rights as a limited owner subject to the original tenant's possessory rights under the existing lease.	rights transferred to the new owner upon foreclosure includes any interest in unpaid rents.
<u>Honse v. Clinton, Not Reported in Pac. Rptr. (2016)</u> The court reaffirmed on appeal that tenants were entitled to 60 days' notice under chapter 61.24 RCW in a foreclosure context and rejected the new owner's argument that the notice requirement did not apply. The court reasoned that the prior determination regarding the applicability of the 60-day notice requirement to tenants in foreclosed properties was correct and required no further reconsideration.	 <u>Savings Bank of Puget Sound v. Mink, 49 Wash.App. 204 (1987)</u> The court held that a deed of trust beneficiary was not required to give a debtor formal notice to quit as a jurisdictional prerequisite to maintaining an unlawful detainer action. The court reasoned that a party in possession after the 20-day post-foreclosure period is analogous to a tenant holding over after expiration of a specified term, and such a party typically has actual knowledge of the foreclosure and needs no further notice prior to filing the unlawful detainer action.
 <u>Indigo Real Estate Services, Inc. v. Wadsworth, 169 Wash.App. 412 (2012)</u> The court held that where a lease provides the tenant with greater protection than the tenant would receive under the unlawful detainer statute, the landlord must comply with the lease terms in any eviction action. The court reasoned that statutory protections do not supersede more favorable lease provisions, and landlords must follow the more protective requirements.	<u>Raun v. Caudill, Not Reported in P.3d (2016)</u> The court held that a purchaser at a trustee's sale is entitled to possession of the property on the 20th day following the sale and may evict occupants and tenants by summary proceedings under the unlawful detainer act after that period. The court determined that the use of statutory notice of nonjudicial foreclosure did not amount to an unlawful eviction.
<u>Skinner v. InCity Properties Holdings, Inc., 35 Wash.App.2d 436 (2025)</u> The court held that RCW 59.12.060 indicates legislative intent that only those in actual occupation of premises when the complaint is filed need be joined originally, and those who take possession subsequently do so subject to the action. The court reasoned that the statute's language limiting required	<u>Wells Fargo Bank Minnesota v. Vincent, 124 Wash.App. 1 (2004)</u> The court held that a mortgagee that purchased property at a nonjudicial foreclosure sale may initiate an unlawful detainer action against the mortgagors. The court determined that statutory notice of postponement provisions governed the foreclosure sale and that the mortgagors' repayment agreement

parties to tenants in actual occupation reflects a policy protecting those in possession at the time of filing.	constituted notice that foreclosure proceedings had been initiated.
<u>Daniels v. Ward, 35 Wash.App. 697 (1983)</u> The court held that unlawful detainer proceedings are limited to defendants in actual possession and that tenants in possession are necessary parties to the action. The court reasoned that the statutory framework requires proper joinder of all tenants in possession, and failure to do so affects the court's jurisdiction over the matter.	 <u>Amresco Independence Funding, Inc. v. SPS Properties, LLC, 129 Wash.App. 532 (2005)</u> The court held that notice requirements under RCW 61.24.040 for nonjudicial foreclosure can be satisfied by serving notice on legal representatives of interested parties, not solely at addresses listed on recorded instruments. The court's interpretation of notice requirements emphasized flexibility in meeting statutory notice obligations for foreclosure proceedings.
<u>Bellevue Square Managers, Inc. v. GRS Clothing, Inc., 124 Wash.App. 238 (2004)</u> The court held that an original tenant in actual possession remains a necessary party subject to the court's subject matter jurisdiction in an unlawful detainer action. The court reasoned that proper identification and joinder of tenants in actual possession is required for the court to exercise jurisdiction over unlawful detainer proceedings.	<u>Seattle Lodge No. 211, Loyal Order of Moose v. Par-T-Pak Beverage Co., 55 Wash.2d 587 (1960)</u> The court held that a successor in interest of a lessee holding by assignment while in possession of premises incurs an obligation to pay rent during actual occupation under the doctrine of privity of estate. The court reasoned that where a landlord was aware of a sale of tenant's assets but failed to join the buyer as a defendant in a foreclosure suit until more than one year later, the buyer was not liable for any rent under the landlord's lien statute.
 <u>Albice v. Premier Mortg. Services of Washington, Inc., 174 Wash.2d 560 (2012)</u> The Supreme Court held that a trustee lacked statutory authority to hold a nonjudicial foreclosure sale beyond 120 days after the date set forth in the notice of trustee's sale, rendering the sale invalid. The court established strict	 <u>National Bank of Commerce of Seattle v. Dunn, 194 Wash. 472 (1938)</u> The court held that a successor in interest of a lessee holding by assignment while in possession of premises incurs an obligation to pay rent during actual occupation under the doctrine of privity of estate, even absent a covenant to pay rent in the original

compliance requirements for foreclosure procedures and rejected arguments that borrowers waived their right to challenge procedural defects by failing to pursue presale remedies.	lease. The court reasoned that privity of estate creates concurrent obligations for successors in interest, and that the original lessor's failure to consent to an assignment does not change the relationship between the lessor and the successor.
<u>Restore Equity, LLC v. Bank of New York Mellon, Not Reported in Pac. Rptr. (2016)</u> The court held that when a foreclosure trustee fails to provide required notice to an interested party, that party becomes an omitted party whose interest is not extinguished by the nonjudicial foreclosure under RCW 61.24.040(7). The court emphasized that the Deed of Trust Act requires adequate opportunity for interested parties to prevent wrongful foreclosure and promotes stability of land titles.	<u>Port of Pasco v. Stadelman Fruit, Inc., 60 Wash.App. 32 (1990)</u> The court held that an assignor remains liable for rent based on privity of contract where the lease contains an agreement to pay rent and a provision making the assignor liable even if the landlord consents to the assignment. The court reasoned that privity of contract obligations survive assignment and continue to bind the original lessee.
<u>Morrell v. Arctic Trading Co., Inc., 21 Wash.App. 302 (1978)</u> The court held that the purpose of notice requirements in nonjudicial foreclosure statutes is to inform persons with interests in property of pending sales so they may act to protect those interests. The court established that strict compliance with notice timing and publication requirements is necessary to ensure interested parties receive adequate opportunity to defend their rights.	<u>Peyton Bldg., LLC v. Niko's Gourmet, Inc., 180 Wash.App. 674 (2014)</u> The court held that a purchaser who obtains a reversion in leased premises can enforce lease covenants running with the reversion, including the tenant's promise to continuously occupy the premises. The court recognized that foreclosure purchasers acquire enforceable rights against tenants under the existing lease terms.
<u>Sangha v. Keen, 4 Wash.3d 852 (2025)</u> The court held that unlawful detainer statutes are in derogation of the common law and must be strictly construed in favor of tenants. The court emphasized that both chapter 59.12 RCW and chapter 59.18 RCW are strictly	 <u>Coleman v. Hoffman, 115 Wash.App. 853 (2003)</u> The court held that a mortgagee that merely collected rents after the mortgagors' default was not a mortgagee in possession and therefore could not be held liable for premises

construed in the tenant's favor, establishing a foundational principle that protects tenants in eviction proceedings.	liability absent indicia of control such as leasing, repairs, or management decisions. The court reasoned that a mortgagee's receipt of rents alone does not constitute sufficient control over the property to establish possession or landlord status.
 <u>Josephinium Associates v. Kahli, 111 Wash.App. 617 (2002)</u> The court held that tenants may assert cognizable legal and equitable defenses in unlawful detainer actions that arise out of the tenancy and affect the tenant's right of possession. The court established that defenses based on facts excusing a tenant's breach are permissible in unlawful detainer proceedings.	<u>Aberdeen Federal Sav. and Loan Ass'n v. Empire Manufactured Homes, Inc., 36 Wash.App. 81 (1983)</u> The court held that a judgment creditor does not acquire rights greater than those of the judgment debtor and therefore cannot claim priority over a prior unrecorded mortgage. The court reasoned that under Washington's recording statute, an unrecorded interest does not automatically lose priority to a judgment lien merely because the judgment creditor relies on record title at the time the lien becomes effective.
 <u>Faciszewski v. Brown, 187 Wash.2d 308 (2016)</u> The court held that unlawful detainer statutes are in derogation of the common law and must be strictly construed in favor of tenants, and that tenants have substantive rights to challenge landlord actions in unlawful detainer proceedings. The court emphasized that procedural and substantive protections for tenants apply even when landlords argue for strict interpretation against tenants.	<u>Zervas Group Architects, P.S. v. Bay View Tower LLC, 161 Wash.App. 322 (2011)</u> The court held that ordinarily an unrecorded interest in real property is subordinate to a recorded interest, and that a bona fide lender's recorded security interest will generally take priority over unrecorded or subsequently recorded encumbrances. The court applied Washington's recording statute to establish that recorded interests prevail over unrecorded ones absent actual knowledge of the unrecorded interest.
 <u>Sherwood Auburn LLC v. Pinzon, 24 Wash.App.2d 664 (2022)</u> The court held that landlords must comply strictly with statutory notice	<u>BAC Home Loans Servicing, LP v. Fulbright, 180 Wash.2d 754 (2014)</u> The court held that Washington has a race-notice recording system where the

requirements before commencing unlawful detainer actions and that when a lease provides for a longer notice period than the statute, tenants are entitled to the full contractual notice period. The court established that failure to provide required notice prevents a landlord from maintaining an unlawful detainer action.	deed or interest first recorded is superior to any outstanding unrecorded conveyance of the same property unless the later mortgagee or purchaser had actual knowledge of the prior unrecorded interest. The court explained that the recording act reverses common law priorities to favor recorded interests.
 <u>Truly v. Heuft, 138 Wash.App. 913 (2007)</u> The court held that the unlawful detainer statute is in derogation of the common law and must be strictly construed in favor of tenants, and that a summons must comply with statutory requirements to confer both personal and subject matter jurisdiction. The court established that procedural defects in unlawful detainer actions can defeat a landlord's claim.	 <u>Kim v. Lee, 145 Wash.2d 79 (2001)</u> The court held that the purpose of the recording statute is to make the deed first recorded superior to any outstanding unrecorded conveyance of the same property unless the mortgagee or purchaser had actual knowledge of the transfer not filed of record. The court established that recorded interests take priority over unrecorded interests as a matter of statutory law.
 <u>Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 (2023)</u> The court held that unlawful detainer statutes are in derogation of the common law and must be strictly construed in favor of tenants, establishing a consistent principle protecting tenant rights in eviction proceedings. The court reaffirmed that strict construction favoring tenants applies to both chapter 59.12 RCW and the RLTA.	 <u>Jordan v. Nationstar Mortgage, LLC, 185 Wash.2d 876 (2016)</u> The Supreme Court held that a lender cannot take possession of property prior to foreclosure based on a default clause in a deed of trust, as this violates Washington's lien theory and RCW 7.28.230(1). The court reasoned that borrowers retain a fundamental right to possession before foreclosure and that the statutory framework prohibits lenders from entering or securing the property before the foreclosure sale is completed.
 <u>Tacoma Rescue Mission v. Stewart, 155 Wash.App. 250 (2010)</u> The court held that a landlord's termination notice must comply with lease requirements and statutory	<u>Bank of New York Mellon v. Muresan, Not Reported in P.3d (2014)</u> The Court of Appeals held that a purchaser at a trustee's sale acquires all rights, title, and interests of the borrower, including accrued rents, and

provisions to maintain an unlawful detainer action, and that improper notice prevents a party from maintaining such action or availing itself of the court's jurisdiction. The court established that procedural compliance with notice requirements is essential to unlawful detainer proceedings.	may bring an unlawful detainer action under RCW 61.24.060(1) after the twentieth day following the sale. The court reasoned that the deed of trust act provides a streamlined process for the purchaser to gain possession and that compliance with chapter 59.12 RCW procedures is sufficient to establish the right to possession.
<u>1930 LLC v. Jackson, 33 Wash.App.2d 494 (2024)</u> The court held that unlawful detainer statutes are in derogation of the common law and must be strictly construed in favor of tenants, and that tenants have the right to have possession issues determined once an unlawful detainer action is commenced. The court reaffirmed strict construction principles protecting tenant rights.	<u>Federal Nat. Mortg. Ass'n v. Ndiaye, 188 Wash.App. 376 (2015)</u> The Court of Appeals held that unlawful detainer is available to a purchaser at a deed of trust foreclosure sale as a means to gain possession of real property under RCW 59.12.032. The court reasoned that the deed of trust act explicitly provides purchasers with the right to summary proceedings under chapter 59.12 RCW to obtain possession.
<u>Princeton Property Management, Inc. v. Allen, 31 Wash.App.2d 454 (2024)</u> The court held that once an unlawful detainer action is commenced and the tenant does not concede the landlord's right to possession, the tenant has the right to have the issue determined, and that anti-waiver provisions of the RLTA protect tenant rights. The court established that tenants cannot be forced to waive fundamental rights in settlement agreements.	 <u>Peoples Nat. Bank of Wash. v. Ostrander, 6 Wash.App. 28 (1971)</u> The Court of Appeals held that a purchaser at a trustee's sale is entitled to possession and may bring an unlawful detainer action without providing formal notice to quit, and that defenses related to the validity of the deed of trust cannot be raised in the unlawful detainer proceeding. The court reasoned that the deed of trust act contemplates summary proceedings and does not require lengthy additional proceedings to obtain possession.
 <u>Leda v. Whisnand, 150 Wash.App. 69 (2009)</u> The court held that residential tenants subject to unlawful detainer actions are afforded a meaningful opportunity to be heard as a matter of procedural due	<u>Northland Development Incorp. v. Snohomish County, Not Reported in P.3d (2001)</u> The Court of Appeals held that a trustee's deed conveys all right, title, and interest in real and personal

process under both the United States and Washington Constitutions. The court established constitutional protections for tenants in eviction proceedings.	property that the grantor had at the time of execution of the deed of trust, including subsequently acquired interests such as accrued rents. The court reasoned that explicit inclusion of property interests in the deed of trust provides sufficient notice of the nature and extent of the secured interest.
<u>Brewer v. Hill, 25 Wash.App.2d 844 (2023)</u> The court held that a resident who collected rent from other tenants was not a lessor with authority to terminate a tenancy in an unlawful detainer action without executing a new lease agreement with the tenant. The court reasoned that the Residential Landlord-Tenant Act is strictly construed in favor of the tenant and that authority to collect rent does not unilaterally change the terms of a lease agreement or establish a new landlord-tenant relationship.	<u>Cole v. Garross, Not Reported in P.3d (2000)</u> The Court of Appeals held that a purchaser at a trustee's sale is entitled to possession on the twentieth day following the sale and has the right to summary proceedings under chapter 59.12 RCW to obtain possession. The court reasoned that the deed of trust act provides this streamlined process for purchasers to gain possession.
<u>Egbert v. Jorgensen, 580 P.3d 1002 (2025)</u> The court held that both the Residential Landlord-Tenant Act and generalized unlawful detainer statutes are strictly construed in favor of tenants. The court established that for residential tenancies, procedures in the generalized unlawful detainer statutes apply to the extent they are not supplanted by the RLTA, reinforcing tenant protections in expedited possession proceedings.	<u>Triangle Property Development, LLC v. Barton, Not Reported in P.3d (2015)</u> The court held that a purchaser at a nonjudicial deed of trust foreclosure sale may bring an unlawful detainer action to evict previous owners if possession is not transferred within 20 days following the sale. The court reasoned that the purchaser need not have actual knowledge of defects in the foreclosure sale to proceed with the unlawful detainer action.
<u>Liverpool LLC v. Farley, 33 Wash.App.2d 568 (2025)</u> The court held that appearance by tenants' attorney at a show cause hearing satisfied the RLTA requirement that tenants appear at the hearing, even without personal oral examination of the	<u>2022 Investments, LLC v. Nieman, Not Reported in Pac. Rptr. (2026)</u> The court held that a purchaser at a deed of trust foreclosure sale may bring an unlawful detainer action to evict the previous owner provided the sale complied with statutory foreclosure

tenants. The court recognized that the RLTA provides procedural protections for tenants in unlawful detainer actions and that strict compliance with appearance requirements must be balanced against tenant protections.	rules, and that subsequent conveyees may also pursue such actions. The court reasoned that the statutory right transfers with the property to subsequent owners.
<u>Garrand v. Cornett, 31 Wash.App.2d 428 (2024)</u> The court held that unlawful detainer statutes are strictly construed in the tenant's favor and that a landlord may file an unlawful detainer complaint only if the tenant remains in possession in violation of the landlord's notice. The court emphasized that the expedited unlawful detainer process must comply with statutory requirements that protect tenant interests.	<u>Nylund Homes, Inc. v. Gruca, Not Reported in Pac. Rptr. (2017)</u> The court held that an unlawful detainer action commenced as a result of a trustee's sale must comply with the requirements of RCW 61.24.040 and 61.24.060. The court reasoned that RCW 61.24.060 specifies the rights and remedies for a purchaser of property at a trustee's sale, including the right to pursue unlawful detainer proceedings.
 <u>Pham v. Corbett, 187 Wash.App. 816 (2015)</u> The court held that tenants in an unlawful detainer action may raise defenses including breach of the implied warranty of habitability and may counterclaim for relocation assistance and damages. The court recognized that the unlawful detainer proceeding does not eliminate substantive tenant protections under the RLTA.	<u>Singh v. Sahm, Not Reported in Pac. Rptr. (2023)</u> The court held that a foreclosure purchaser may begin an unlawful detainer action under chapter 59.12 RCW to evict if possession is not transferred within 20 days following the trustee's sale. The court reasoned that the purchaser must comply with the notice and substantive requirements of RCW 61.24.040 and .060 to pursue such an action.
<u>Motoda v. Donohoe, 1 Wash.App. 174 (1969)</u> The court held that tenants in unlawful detainer actions are permitted to raise affirmative equitable defenses but are not permitted to assert offsets and counterclaims once proper notice is established. The court identified that equitable defenses are available to tenants defending against eviction under RCW 59.12.030.	<u>Nutley v. Gregory, 6 Wash.App. 576 (1972)</u> The court held that a tenant's assignment of a lease to a corporation in which the tenant was principal stockholder to escape personal responsibility and liability under the lease was inoperative and did not relieve the assignor of obligations. The court reasoned that the assignor remained obligated to pay rent until

	divesting himself of ownership of the assignee's stock, establishing that assignments cannot be used as a mechanism to avoid lease obligations.
 <u>Foisy v. Wyman, 83 Wash.2d 22 (1973)</u> The court held that a tenant in an unlawful detainer action should be permitted to introduce evidence supporting the defense that a landlord's failure to maintain premises in habitable condition constitutes failure of consideration and relieves the tenant of the obligation to pay rent. The court recognized that tenants have substantive defenses available in unlawful detainer proceedings.	<u>OTR v. Flakey Jake's, Inc., 112 Wash.2d 243 (1989)</u> The court held that a transferor of an interest in leased property who was obligated to perform an express promise in the lease that touches and concerns the transferred interest continues to be obligated after the transfer if the transfer does not constitute a true assignment. The court reasoned that failure to obtain written consent to assignment, if required by the lease, renders the assignment voidable at the lessor's option rather than void, and the transferor remains bound by privity of contract.
<u>Skarperud v. Long, 40 Wash.App. 548 (1985)</u> The court held that tenants may assert affirmative defenses in unlawful detainer actions, including defenses based on inadequate notice and payment, provided they comply with civil rules. The court recognized that equitable defenses are available to tenants to challenge eviction proceedings.	<u>Puget Mill Co. v. Kerry, 183 Wash. 542 (1935)</u> The court held that assignment of a lease constitutes sufficient consideration for an assignee's assumption of all obligations under the original lease. The court reasoned that the transaction is analogous to a purchaser of real estate assuming an existing mortgage, where the conveyance of the property itself provides valid consideration for the promise to pay the obligation.
 <u>Sunrise Group Homes, Inc. v. Ferguson, 55 Wash.App. 285 (1989)</u> The court held that tenants may raise affirmative defenses available under the Residential Landlord-Tenant Act in unlawful detainer actions, including retaliatory eviction defenses. The court recognized that the RLTA provides	 <u>Delano v. Tennent, 138 Wash. 39 (1926)</u> The court held that an assignee of a lease may be relieved of covenants only if the assignee has no obligation other than to perform covenants during occupancy of the premises. The court reasoned that when an assignee

substantive protections to tenants in eviction proceedings.	expressly assumes and agrees to carry out all obligations of the lease according to its terms, the assignee becomes bound by those obligations.
<u>Castellon v. Rodriguez, 4 Wash.App.2d 8 (2018)</u> The court held that a tenant did not waive personal jurisdiction defense by merely requesting an interpreter and responding to court inquiries, and that the trial court lacked subject matter jurisdiction to enter judgment without proper jurisdiction over the tenant. The court recognized that jurisdictional defenses are available to tenants in unlawful detainer actions.	 <u>Olin v. Goehler, 39 Wash.App. 688 (1985)</u> The court held that if an assignment of a lease is conditional, the assignor is not divested of the entire interest in the leasehold and retains a valid and enforceable right of reentry on breach of condition. The court reasoned that an absolute assignment divests the assignor of the entire estate, but a conditional assignment preserves the assignor's interest and rights when conditions are breached.
 <u>Port of Kingston v. Brewster, Not Reported in P.3d (2015)</u> The court held that tenants are entitled to a jury trial on the issue of the identity of the tenant or tenants liable in an unlawful detainer action when the proper identification of contracting parties is presented by the pleadings. The court recognized that equitable defenses arising out of the tenancy are available when they affect the tenant's right to possession.	 <u>State v. Meador, 60 Wash.2d 543 (1962)</u> The court held that return of a key and relinquishment of possession of premises by a subtenant of an assignee constituted peaceful re-entry by the assignor, and that even though the transfer constituted an assignment, the assignor's retention of a right of re-entry for breach of condition was valid and enforceable. The court reasoned that a transfer of the tenant's entire interest for the balance of the term constitutes an assignment, and the assignor may retain enforceable rights if the assignment was conditional.
<u>Parks v. Lepley, 160 Wash. 287 (1931)</u> The court held that a tenant may acquire the landlord's title by purchase at foreclosure during the tenancy, and a lessee who purchases at foreclosure remains bound to account to the original lessor as landlord under the lease. The court recognized that tenants retain	<u>Albice v. Premier Mortg. Services of Washington, Inc., 157 Wash.App. 912 (2010)</u> The court held that a properly executed foreclosure action extinguishes the debt and transfers title to the property to the beneficiary of the deed of trust or to the successful bidder at a public foreclosure

substantive rights even when foreclosure occurs on the property.	sale. The court applied RCW 61.24.005 et seq. to establish that foreclosure transfers title to the new owner.
 <u>Atwood v. McGrath, 137 Wash. 400 (1926)</u> The court held that a tenant is not estopped from showing that he has acquired the title of the landlord or become a purchaser at a mortgage foreclosure sale during the tenancy. The court recognized that tenants retain the ability to assert independent property rights even during an ongoing tenancy.	 <u>Seattle Mortg. Co., Inc. v. Unknown Heirs of Gray, 133 Wash.App. 479 (2006)</u> The court held that Washington's recording system was enacted to ensure that a deed recorded first in time is superior to any other conveyance, and that liens generally take precedence in order of time with the first in time being first in right. The court applied this principle to determine priority between competing creditors based on recording dates.
<u>Seattle-First Nat. Bank v. Westlake Park Associates, 42 Wash.App. 269 (1985)</u> The court held that a lease provision regarding termination of the lease at the lessor's option applies to mortgage foreclosures and deed of trust sales when the lease expressly places the lessor's interest paramount to any mortgage. The court recognized that lease provisions protecting tenant interests can survive foreclosure proceedings when properly drafted.	<u>In re Estate of Patton, 1 Wash.App.2d 342 (2017)</u> The court held that the priority of competing lien claims depends on the order in which those claims attached to the encumbered property, subject to recording requirements, and that secured creditors' interests in foreclosed property take priority over other claims. The court established that secured creditors' rights are determined by the attachment and recording of their liens.
 <u>Brydges v. Millionair Club, 15 Wash.2d 714 (1942)</u> The court held that a tenant may ordinarily show that he has acquired the title of the landlord or become a purchaser at a mortgage foreclosure sale during the existence of the tenancy. The court recognized that tenants retain substantive property rights that can be asserted independently of their leasehold status.	<u>Construction Loan Services II, LLC v. ECM Riverside LLC, 32 Wash.App.2d 281 (2024)</u> The court held that secured creditors with liens on property hold first position in distribution priorities and shall receive proceeds from disposition of their collateral according to their respective priorities under applicable law. The court established that secured creditor status and priority are determined by recording and lien attachment, not by other claims against the property.

<u>Stetson & Post Mill. Co. v. Pacific Amusement Co., 37 Wash. 335 (1905)</u> The court held that a foreclosure sale of a leasehold interest cannot convey greater rights than the lessee possessed, and that a lessor's peaceable re-entry for breach of lease conditions operates as a forfeiture against all persons claiming under the lease. The court recognized that tenant rights are protected even against subsequent lienholders who attempt foreclosure.	<u>Associates Housing Finance L.L.C. v. Stredwick, 120 Wash.App. 52 (2004)</u> The court held that a secured creditor's interest in property has priority over an unsecured creditor's judgment lien and over a subsequent purchaser's interest in the same property. The court established that secured creditors' priority rights are determined by the nature and recording of their security interests, not by subsequent conveyances or claims.
<u>Young v. Riley, 59 Wash.2d 50 (1961)</u> The court held that a tenant may not assert a set-off or counterclaim in an unlawful detainer action and that the tenant was guilty of unlawful detainer. The court established that unlawful detainer actions are limited summary proceedings focused on possession, preventing tenants from raising broader defenses unrelated to the statutory grounds for eviction.	 <u>In re Freeborn, 94 Wash.2d 336 (1980)</u> The court held that an assignee of real estate contract rights must comply with UCC Article 9 filing requirements to have priority over subsequent lien creditors and purchasers, and that recording under the real property recording statute alone is insufficient for priority. The court established that proper filing and recording procedures determine priority of interests in real property.
<u>Paschall v. VoiceStream PCS III Corp., Not Reported in P.3d (2003)</u> The court held that unlawful detainer statutes are in derogation of the common law and must be strictly construed in favor of the tenant. The court established that strict construction principles protect tenants by requiring strict compliance with statutory procedures in summary eviction proceedings.	 <u>Benhart v. Gorham, 14 Wash.App. 723 (1976)</u> The court held that lease terms binding successors and assigns remain enforceable across property transfers and estate proceedings. The court reasoned that explicit lease language extending obligations to heirs, executors, administrators, successors and assigns creates binding obligations that survive changes in ownership and pass through estate proceedings.
<u>Burgess v. Crossan, 189 Wash.App. 97 (2015)</u> The court held that because the unlawful	<u>In re Estate of Hayes, 185 Wash.App. 567 (2015)</u> The court held that lease provisions

detainer statute derogates from common law, courts must construe it strictly in favor of the tenant, and that the statute only allows a tenant receiving statutory notice to cure in two specific circumstances. The court emphasized that strict construction principles protect tenants by limiting the grounds upon which landlords can proceed with eviction.	binding heirs, personal representatives, and assigns of the landlord create enforceable obligations that survive property partition and transfer to successors. The court reasoned that explicit binding language in leases extends obligations to successors in interest regardless of subsequent property divisions or transfers.
 <u>Commonwealth Real Estate Services v. Padilla, 149 Wash.App. 757 (2009)</u> The court held that while the unlawful detainer statute is designed to provide expeditious summary proceedings, it is in derogation of the common law and must be strictly construed in favor of the tenant, and that the burden is upon the plaintiff to prove its right to possession. The court established that strict construction protects tenants and that possession is presumed lawful until the contrary appears.	 <u>James v. Corvin, 184 Wash. 356 (1935)</u> The court held that lease covenants binding heirs, executors, administrators, and assigns create enforceable obligations that survive the original lessee's death and pass to successors. The court reasoned that explicit binding language extends lease obligations to successors in interest through estate proceedings.
 <u>Community Investments, Ltd. v. Safeway Stores, Inc., 36 Wash.App. 34 (1983)</u> The court held that although the unlawful detainer statute provided for ten-day notice when default was claimed for breach of covenant other than rent, the landlord was bound by the contractual provision requiring 20 days to cure default, and thus the action was premature. The court established that tenants are protected by contractual notice periods that exceed statutory minimums.	 <u>Robroy Land Co., Inc. v. Prather, 95 Wash.2d 66 (1980)</u> The court held that options binding heirs, personal representatives, and assigns of optionors are presumed to be limited to a reasonable time and do not violate the rule against perpetuities or restraints on alienation. The court reasoned that agreements extending to successors and assigns are enforceable property interests that bind subsequent owners within reasonable temporal limits.
 <u>Canterwood Place L.P. v. Thande, 106 Wash.App. 844 (2001)</u> The court held that the unlawful detainer	 <u>Hoffman v. Tieton View Community M.E. Church, 33 Wash.2d 716 (1949)</u> The court held that lease provisions

statute is in derogation of the common law and must be strictly construed in favor of the tenant, and that compliance with statutory requirements for service is jurisdictional. The court established that strict construction principles and jurisdictional requirements protect tenants by ensuring landlords strictly comply with procedural requirements.	reserving reversion rights to lessors, their heirs, or assigns create enforceable landlord-tenant relationships that bind successors in interest. The court reasoned that explicit lease language extending rights and obligations to heirs and assigns creates binding property interests that survive the original parties.
<u>Wilson v. Daniels, 31 Wash.2d 633 (1948)</u> The court held that unlawful detainer statutes are in derogation of the common law and must be strictly construed in favor of the tenant, and that the tenant must be in default in the particulars enumerated in the notice at the time notice is served. The court established foundational principles that strict construction protects tenants and that landlords must strictly comply with notice requirements.	<u>Oliver v. Polson, 117 Wash. 385 (1921)</u> The court held that lease provisions binding heirs, representatives, assigns, and successors in interest create enforceable obligations that survive assignment. The court reasoned that explicit binding language in leases extends obligations to all successors in interest even when the lease is assigned to new parties.
<u>Kitsap County Consolidated Housing Authority v. Henry-Levingston, 196 Wash.App. 688 (2016)</u> The court held that any ambiguities in the unlawful detainer statute are strictly construed in the tenant's favor. The court established that strict construction principles require courts to resolve ambiguities in statutory language in ways that protect tenants in summary eviction proceedings.	 <u>Keene v. Zindorf, 81 Wash. 152 (1914)</u> The court held that lease covenants extending to heirs, executors, administrators, assigns and successors in interest create binding obligations that survive the original parties. The court reasoned that explicit binding language in leases creates enforceable property interests that automatically bind all successors in interest.
 <u>Housing Authority of City of Everett v. Terry, 114 Wash.2d 558 (1990)</u> The court held that the unlawful detainer statute is in derogation of common law and must be strictly construed in favor of the tenant, and that a landlord must comply with the requirements of the statute to take advantage of its favorable	 <u>Crafts v. Pitts, 161 Wash.2d 16 (2007)</u> The court held that lease provisions requiring delivery of quitclaim deeds are enforceable against lessor's assignees and successors in interest. The court reasoned that contractual duties in leases binding successors and assigns

provisions. The court established that strict construction protects tenants and that landlords bear the burden of strict statutory compliance.	create enforceable obligations that survive assignment and transfer of the lessor's interest.
 <u>Christensen v. Ellsworth, 134 Wash.App. 295 (2006)</u> The court held that because the unlawful detainer statute derogates the common law, courts must strictly construe it favoring the tenant. The court established that strict construction principles require courts to interpret ambiguous statutory provisions in ways that protect tenants in summary eviction proceedings.	<u>Nelson v. Great Northwest Federal Sav. and Loan Ass'n, 37 Wash.App. 316 (1984)</u> The court held that a conditional purchase and sale agreement did not convey an interest in real estate or make purchasers 'apartment owners' with rights to prevent foreclosure, and thus purchasers were not entitled to specific performance after a mortgagee obtained the property at nonjudicial foreclosure. The court reasoned that without a completed conveyance, the purchasers had no legal interest that would survive the foreclosure sale.
 <u>IBF, LLC v. Heuft, 141 Wash.App. 624 (2007)</u> The court held that the unlawful detainer statute is strictly construed in favor of the tenant. The court established that parties validly contracting for longer notice periods than the statute provides are bound by those contractual provisions, protecting tenants through strict construction.	 <u>Tellevik v. Real Property Known as 31641 West Rutherford Street Located In City of Carnation, Wash., 125 Wash.2d 364 (1994)</u> The court held that a deed of trust holder possesses not only the right to prohibit sale but also the right to evict occupants, modify the property, condition occupancy, receive rents, and supersede the owner in all rights pertaining to the use, possession, and enjoyment of the property. The court reasoned that these comprehensive rights flow from the security interest granted in the deed of trust.
<u>National Bank of Commerce v. Fountain, 9 Wash.App. 727 (1973)</u> The court held that where a life tenant and remainderman executed a lease and subsequently mortgaged their respective interests without specifically including the leasehold interest in the mortgage,	<u>Roberts v. State, 175 Wash. 154 (1933)</u> The court held that a purchaser at a foreclosure sale of farm land in possession of a tenant under a lease was entitled to rents for the period subsequent to the sale. The court reasoned that the foreclosure sale

the lease was not encumbered by the mortgage and remained in effect following foreclosure. The court reasoned that a pre-existing lease between joint mortgagors takes priority over a subsequently executed mortgage when the leasehold interest is not specifically set forth in the mortgage document.	transferred all property interests, including the right to collect future rents, to the new owner.
 <u>McVean v. Coe, 12 Wash.App. 738 (1975)</u> The court held that where recorded contracts were executory and the purchase price had not been fully paid, the parties were not bona fide purchasers for value and therefore a prior unrecorded lease option and hunting rights agreement was not affected by the executory contracts. The court reasoned that an unrecorded lease retains validity against parties who are not bona fide purchasers for value.	 <u>Hendricks v. Lake, 12 Wash.App. 15 (1974)</u> The court held that a restrictive covenant in an unrecorded lease does not bind a bona fide purchaser of a leasehold estate in premises outside the lessee's chain of title. The court reasoned that unrecorded lease provisions cannot bind subsequent purchasers who lack notice of such restrictions.
 <u>Pendleton Place, LLC v. Asentista, 29 Wash.App.2d 516 (2024)</u> The court held that a landlord's failure to comply with the CARES Act's 30-day notice requirement for eviction was a jurisdictional defect that prevented the court from issuing a writ of restitution. The court reasoned that the requirement applied to all eviction bases, not just nonpayment of rent, and that the landlord's failure to provide adequate notice warranted reversal and attorney fees for the tenant.	<u>U.S. Bank National Association as Trustee for Truman 2016 SC6 Title Trust v. Roosild, 17 Wash.App.2d 589 (2021)</u> The court held that preforeclosure notice requirements contained in a deed of trust applied to judicial foreclosure actions and constituted conditions precedent to such actions. The court reasoned that when a deed of trust designated notice provisions as precedent to any judicial action, those requirements must be satisfied before foreclosure can proceed.
 <u>Sowers v. Lewis, 49 Wash.2d 891 (1957)</u> The court held that a landlord's failure to comply with the statutory notice requirements for different grounds of	<u>Spokane Airport Board v. Experimental Aircraft Association, Chapter 79, 198 Wash.2d 476 (2021)</u> The court held that a tenant in a fixed-term commercial lease becomes a

eviction deprived the court of jurisdiction over those claims. The court reasoned that a three-day notice for nonpayment of rent could not constitute substantial compliance with a ten-day notice requirement for breach of covenant, and thus the court lacked jurisdiction over the covenant breach count.	holdover tenant liable for unlawful detainer when they remain in possession after the expiration of the lease term. The court recognized that unlawful detainer actions are available against tenants who overstay their lease period.
 <u>Sullivan v. Purvis, 90 Wash.App. 456 (1998)</u> The court held that a landlord's failure to provide the tenant with a cure or vacate option in the eviction notice deprived the trial court of subject matter jurisdiction over the unlawful detainer action. The court reasoned that the statutory notice requirement mandates that tenants be given the alternative to cure breaches, and the absence of this option is a jurisdictional defect requiring reversal.	<u>Mullendore Theatres, Inc. v. Growth Realty Investors Co., 39 Wash.App. 64 (1984)</u> The court held that a landlord's covenant to refund a tenant's security deposit does not run with the land and therefore does not obligate a successor landlord to refund it where the lease permits but does not require that forfeited deposits be used for the benefit of the leased property. The court reasoned that personal covenants of the original landlord do not automatically bind successors in interest.
 <u>Christensen v. Ellsworth, 162 Wash.2d 365 (2007)</u> The court held that strict compliance with statutory notice requirements is mandatory for unlawful detainer actions and that time computation rules apply to the notice period. The court reasoned that proper service of notice is a jurisdictional prerequisite and that the three-day waiting period before commencing an unlawful detainer action must be calculated according to statutory requirements.	<u>Queen City Sav. & Loan Ass'n v. Mannhalt, 111 Wash.2d 503 (1988)</u> The court held that a holder of an unrecorded interest in property is not entitled to notice of a trustee's sale, distinguishing between recorded and unrecorded interests in the foreclosure context. The court reasoned that the recording statute determines who receives notice of foreclosure proceedings based on the status of their recorded interests.
 <u>Housing Authority of City of Seattle v. Silva, 94 Wash.App. 731 (1999)</u> The court held that a landlord must satisfy the jurisdictional requirement of providing proper termination notice to tenants before commencing an unlawful	 <u>Housing Resource Group v. Price, 92 Wash.App. 394 (1998)</u> The court held that a landlord did not waive its right to evict a tenant by accepting partial rent payments after issuing three-day notices to pay or

detainer action. The court reasoned that prior notices providing opportunities to cure lease violations, followed by a final termination notice, satisfied the statutory notice requirements and were necessary prerequisites to the court's jurisdiction.	vacate. The court reasoned that the notices adequately apprised the tenant of the rent arrearage and that the landlord's application of payments to the earliest obligations did not constitute waiver of eviction rights despite the tenant's continued underpayment.
<u>Marsh-McLennan Bldg., Inc. v. Clapp, 96 Wash.App. 636 (1999)</u> The court held that landlords must strictly comply with statutory requirements for service of notice in unlawful detainer actions, rejecting the argument that substantial compliance was sufficient for time and manner requirements. The court reasoned that unlawful detainer statutes are in derogation of common law and must be strictly construed in favor of tenants, distinguishing between strict compliance for manner of service and substantial compliance for form and content.	<u>In re Upton, 102 Wash.App. 220 (2000)</u> The Court of Appeals held that interests in real property continue in the proceeds from a trustee's nonjudicial foreclosure sale in the same order of priority that they attached to the property. The court reasoned that junior interests, including those of property owners, are subordinate to senior liens in the distribution of foreclosure proceeds.
 <u>Little v. Catania, 48 Wash.2d 890 (1956)</u> The court held that giving a statutory three-day notice is a condition precedent to an unlawful detainer action and must be established at trial before judgment can be entered. The court reasoned that where the three-day notice was neither pleaded nor proved, any judgment of unlawful detainer was erroneous.	<u>Deutsche Bank Nat. Trust Co. v. Slotke, 192 Wash.App. 166 (2016)</u> The Court of Appeals held that when a deed of trust is foreclosed as a mortgage, the law of mortgages applies, and that a deed of trust may be judicially foreclosed by commencing an action in superior court. The court reasoned that a deed of trust is a species of mortgage and thus subject to mortgage law principles.
<u>Garneau v. Lauer, Not Reported in P.2d (1999)</u> The court held that time and manner requirements for service of notice in unlawful detainer actions require strict adherence, distinguishing these from form and content requirements which may allow substantial compliance. The	<u>Klee v. Snow, 27 Wash.App.2d 19 (2023)</u> The court held that a landlord-owner was not required to make reasonable attempts to sell the property before evicting a tenant under the statute allowing eviction when an owner elects to sell. The court reasoned that the

court reasoned that the material requirement is the giving of proper notice according to statutory time and manner specifications.	statute's requirement to make reasonable attempts to sell applies only after the tenant vacates, not before, and the owner has the right to terminate tenancy with proper notice.
<u>Krull v. Lawson, Not Reported in P.3d (2016)</u> The court held that compliance with the method of process in RCW 59.12.040 for serving a three-day notice is jurisdictional, and that service by mail adds an additional day to the notice requirement. The court reasoned that a tenant is guilty of unlawful detainer only four days after the notice is properly posted and mailed.	 <u>Faciszewski v. Brown, 192 Wash.App. 441 (2016)</u> The court held that a landlord's notice to quit stating the reason for eviction included sufficient facts to support termination even though it parroted statutory language. The court reasoned that landlords are not required to disclose more specific information beyond what the statute requires, and substantial compliance with notice provisions is sufficient.
<u>Stewart v. Tacoma Rescue Mission, Not Reported in P.3d (2010)</u> The court held that a party who files an unlawful detainer action after improper notice may not maintain such action or avail itself of the superior court's jurisdiction. The court reasoned that the proper terminology is that inadequate notice prevents the party from maintaining the action rather than depriving the court of jurisdiction.	 <u>TMT Bear Creek Shopping Center, Inc. v. Petco Animal Supplies, Inc., 140 Wash.App. 191 (2007)</u> The court held that a tenant's defense that its breach of lease was not material was insufficient to justify vacation of a default judgment against the tenant. The court emphasized that landlords may recover damages for breach of lease terms even when the breach is not deemed material.
 <u>Puget Sound Inv. Group, Inc. v. Bridges, 92 Wash.App. 523 (1998)</u> The court held that a purchaser at a foreclosure sale must establish superior title before bringing an unlawful detainer action when the party in possession holds color of title. The court reasoned that unlawful detainer does not provide a forum for litigating claims to title, and therefore a quiet title action must precede the eviction proceeding.	 <u>Ben Holt Industries, Inc. v. Milne, 36 Wash.App. 468 (1984)</u> The court held that where a lessee raised the affirmative defense that a lease was never perfected and invoked the statute of frauds, the defense was adequately pleaded despite the lessor having a copy of the written lease. The court addressed pleading requirements for affirmative defenses in lease disputes.

[Cook v. Thompson, Not Reported in Pac. Rptr. \(2021\)](#)

The court held that a purchaser at a foreclosure sale lacked standing to pursue an unlawful detainer action when the trustee failed to provide proper notice of foreclosure. The court reasoned that standing requires proof of ownership and compliance with statutory notice requirements under the Deed of Trust Act.

[Barnett v. Buchan Baking Co., 45 Wash.App. 152 \(1986\)](#)

The court held that a restraint on assignment of a lease may be unreasonable and unenforceable unless the lessor can show that enforcement is necessary to protect the lessor's security. The court reasoned that lease provisions restricting assignment without written consent are enforceable when the lessor demonstrates a legitimate interest in controlling who occupies the property.

[Snuffin v. Mayo, 6 Wash.App. 525 \(1972\)](#)

The court held that an unlawful detainer action must be dismissed when the plaintiff fails to comply with statutory notice requirements, even if the defendant does not raise the defense. The court reasoned that the limited jurisdiction of unlawful detainer proceedings requires strict adherence to statutory procedures, and failure to provide proper notice to terminate tenancy deprives the court of subject matter jurisdiction.

 [Coulos v. Desimone, 34 Wash.2d 87 \(1949\)](#)

The court held that a covenant in a lease prohibiting assignment without written consent is not broken when an assignment is made by an assignee back to the original lessee. The court reasoned that such anti-assignment provisions become ineffective when the same instrument imposes continuing obligations to perform the lease terms, as the original lessee remains bound by those obligations.

 [Housing Authority of City of Everett v. Kirby, 154 Wash.App. 842 \(2010\)](#)

The court held that noncompliance with the statutory method of process in an unlawful detainer action prevented the superior court from acquiring subject matter jurisdiction, requiring dismissal without prejudice. The court reasoned that procedural errors in service and notice deprive courts of the limited jurisdiction granted under the unlawful detainer statute.

 [Gazzam v. Young, 114 Wash. 66 \(1921\)](#)

The court held that under a lease providing that it cannot be transferred without written consent of the lessor, there can be no subletting constituting an assignment of the leased property without the lessor's consent. The court reasoned that the word 'transfer' has a broader meaning than 'assignment' and covers any act by which the owner delivers or conveys property to another with intent to pass rights therein.

[First Union Management, Inc. v. Slack, 36 Wash.App. 849 \(1984\)](#)

The court held that alleged deficiencies in a landlord's complaint in an unlawful detainer action cannot enlarge the court's jurisdiction, and the appropriate procedure upon proof of critical deficiency in the summons or complaint is dismissal of the unlawful detainer action. The court reasoned that strict compliance with statutory requirements is necessary to establish subject matter jurisdiction.

 [Ernst Home Center, Inc. v. Sato, 80 Wash.App. 473 \(1996\)](#)

The court held that parties to a lease can negotiate for lease terms to which the standard of reasonableness in withholding consent to assignment may or may not apply. The court reasoned that landlords and tenants have freedom to contract regarding the conditions under which lease assignments may occur, and the parties' agreement controls whether reasonableness applies.

[Kessler v. Nielsen, 3 Wash.App. 120 \(1970\)](#)

The court held that the statutory action for unlawful detainer is summary in nature and requires strict adherence to statutory procedure, with failure to follow the statute defeating the court's jurisdiction. The court reasoned that the limited jurisdiction of unlawful detainer proceedings demands precise compliance with all procedural requirements.

 [Johnson v. Yousoofian, 84 Wash.App. 755 \(1996\)](#)

The court held that a lease requiring a lessee to obtain the lessor's consent to assignment imposed no implied covenant of good faith requiring the lessor to be reasonable in refusing such consent. The court reasoned that the lessor's withholding of consent to assignment does not support a claim of tortious interference with business expectancy when the lease explicitly grants the lessor discretion over assignments.

 [Sprincin King Street Partners v. Sound Conditioning Club, Inc., 84 Wash.App. 56 \(1996\)](#)

The court held that the trial court is deprived of subject matter jurisdiction unless the plaintiff substantially complies with the unlawful detainer summons statute. The court reasoned that strict compliance with statutory requirements is a jurisdictional prerequisite to maintaining an unlawful detainer action.

 [Umpqua Bank v. Shasta Apartments, LLC, 194 Wash.App. 685 \(2016\)](#)

The court held that a secured creditor is entitled to pursue remedies against property owners and guarantors after foreclosure sale of secured property, and that the receivership statute does not preclude secured creditors from enforcing their rights. The court established that secured creditors' rights are preserved and enforceable against the property and parties liable on the underlying debt.

<u>Lockett v. Saturno, 21 Wash.App.2d 216 (2022)</u> The court held that the Residential Landlord-Tenant Act creates remedies for tenants to protect tenant interests susceptible to a landlord's upper hand, especially during times of housing shortages. The court recognized that the RLTA provides statutory protections designed to balance the bargaining power between landlords and tenants in residential leasing disputes.	<u>Tomlinson v. Clarke, 60 Wash.App. 344 (1991)</u> The court held that executory real estate contracts are conveyances subject to Washington's Recording Act, and that the 1984 amendments clarified the legislature's intent to recognize such contracts as capable of being recorded and protected under the Recording Act. The court established that recording requirements apply to executory contracts to establish priority of interests.
<u>Heston v. Christensen, 30 Wash.App.2d 511 (2024)</u> The court held that a residential landlord violated statutory protections prohibiting the charging of late fees or other charges against tenants for nonpayment of rent during an eviction moratorium. The court applied strict statutory construction to protect tenant rights and recognized that tenants have defenses against landlord actions that violate RLTA provisions.	 <u>Piotrowski v. Parks, 39 Wash.App. 37 (1984)</u> The court held that agreements between adjoining landowners regarding property boundaries become binding and enforceable upon successors in interest after constructive notice is given. The court reasoned that successors in interest are bound by agreements made by their predecessors when the agreement is memorialized through physical acts like fence erection.
<u>Gebreeralse v. Columbia Debt Recovery, 24 Wash.App.2d 650 (2022)</u> The court held that a tenant could assert claims under the Residential Landlord-Tenant Act as a bar to forfeiture of security deposit against a debt collector and that a landlord cannot seek RLTA remedies while also retaining a security deposit as nonrefundable. The court recognized that RLTA protections apply to tenants even in collection actions and provide substantive defenses.	<u>Arnold v. Moore, 96 Wash.App. 488 (1999)</u> The court held that the term 'purchaser' in real estate contract statutes includes successors and assigns of the original purchaser. The court reasoned that statutory definitions of purchaser necessarily encompass successors and assigns to ensure proper notice and enforcement of contract rights against all parties in interest.
<u>Silver v. Rudeen Management Company, Inc., 197 Wash.2d 535 (2021)</u> The court held that the purpose of the	<u>Grove v. Payne, 47 Wash.2d 461 (1955)</u> The court held that deeds conveying

Residential Landlord-Tenant Act is to create remedies for tenants to protect tenant interests susceptible to the landlord's upper hand and to balance bargaining positions between landlord and tenant by placing affirmative duties on the landlord. The court emphasized that the RLTA treats many of the parties' obligations as interdependent.	land to grantees and their heirs and assigns create valid subsisting interests that bind successors. The court reasoned that conveyances to heirs and assigns create defeasible estates that are enforceable against and binding upon all successors in interest.
 <u>Housing Authority of Grant County v. Newbigging, 105 Wash.App. 178 (2001)</u> The court held that a tenant cured a breach that formed the basis of an eviction and unlawful detainer action and vacated the default judgment, recognizing that tenants have the right to cure defaults and contest eviction proceedings. The court found that vacating a default judgment would not prejudice the housing authority when the tenant demonstrated ability to cure.	<u>Hawkes v. Hoffman, 56 Wash. 120 (1909)</u> The court held that party wall agreements binding successors and assigns run with the land and are binding on grantees of the respective parties. The court reasoned that agreements explicitly binding successors and assigns create property interests that automatically transfer to and bind subsequent owners.
 <u>Dexheimer v. CDS, Inc., 104 Wash.App. 464 (2001)</u> The court held that a tenant's remedies for a landlord's violation of the Residential Landlord Tenant Act are limited to specific statutory remedies including repair and deduct, rent reduction, rent into trust account, or termination of tenancy. The court recognized that tenants have affirmative defenses and remedies available in unlawful detainer actions based on RLTA violations.	<u>Birkeland v. Corbett, 51 Wash.2d 554 (1958)</u> The court held that successors in interest of a purchaser are bound by the original purchase contract and can be held liable for breach. The court reasoned that successors in interest automatically assume the rights and obligations of their predecessors in property transactions.
 <u>Carlstrom v. Hanline, 98 Wash.App. 780 (2000)</u> The court held that failure to comply with notice requirements under the Just Cause Eviction Ordinance defeats the court's jurisdiction in an unlawful	 <u>Metropolitan Federal Sav. and Loan Ass'n v. Roberts, 72 Wash.App. 104 (1993)</u> The court held that a purchaser of mortgaged property at a sheriff's sale had no right to obtain a finding of

detainer action. The court reasoned that proper notice is a jurisdictional requirement and that tenants have statutory protections that must be strictly observed by landlords seeking eviction.	abandonment to extinguish redemption rights, regardless of whether the property had been abandoned. The court reasoned that the purchaser's rights at foreclosure are limited to those specifically granted by statute and do not include the power to unilaterally eliminate other parties' interests.
<u>Thornely v. Andrews, 40 Wash. 580 (1905)</u> The court held that when a mortgagee foreclosed on property without making the occupant a party to the foreclosure proceedings, the foreclosure was a nullity as to that occupant and did not affect their possessory rights. The court reasoned that adverse possession rights continued to run in favor of the occupant because the foreclosure sale only vested interests in parties who were served or appeared in the action, and the occupant's interest was therefore unaffected by the foreclosure.	
<u>Viewcrest Condominium Association v. Robertson, 197 Wash.App. 334 (2016)</u> The court held that a property owner's statutory right to possession during the redemption period controls over a lienholder's rights prior to a forced foreclosure sale under RCW 6.23.110(4). The court reasoned that the former owner retained possession rights with no obligation to pay rent during the redemption period following foreclosure.	
 <u>Howard v. Edgren, 62 Wash.2d 884 (1963)</u> The court held that a mortgagee has no right to possession of mortgaged real property without a foreclosure and sale according to law under RCW 7.28.230. The court reasoned that the mortgagor	

retains the right to possession of mortgaged property until foreclosure and sale occurs.	
 <u>Kendrick v. Davis, 75 Wash.2d 456 (1969)</u> The court held that mortgagees have no right to possession nor to require transfer of title until they acquire the interests of the mortgagor either by foreclosure or by the mortgagor's conveyance under RCW 7.28.230. The court reasoned that it is hornbook law that a mortgagee has no right to possession of mortgaged real property without a foreclosure and sale according to law.	
<u>Pierce County v. Evans, 17 Wash.App. 201 (1977)</u> The court held that notice complying with statutory dictates is a jurisdictional prerequisite to entry of a valid judgment and enforceability of a foreclosure sale. The court reasoned that failure to comply with statutory provisions relating to content and manner of notice in foreclosure proceedings leaves the court without jurisdiction and renders any foreclosure sale and deed void.	
 <u>Rosholt v. Snohomish County, 19 Wash.App. 300 (1978)</u> The court held that jurisdiction for foreclosure of a tax certificate of delinquency is dependent on compliance with statutory notice requirements, and that a foreclosure sale and tax deed are void for failure to obtain jurisdiction when proper notice is not given to all record titleholders. The court reasoned that if only timely notice given is by publication and a reasonably attentive person would	

not be alerted due to material defects in the notice, the foreclosure is void.	
 <u>Port of Longview v. International Raw Materials, Ltd., 96 Wash.App. 431 (1999)</u> The court held that a tenant may raise affirmative equitable defenses in an unlawful detainer action, including retaliatory eviction. The court recognized that equitable defenses are available to tenants defending against eviction, particularly where the landlord's conduct violates public policy or constitutional protections.	
 <u>Trujillo v. Northwest Trustee Services, Inc., 183 Wash.2d 820 (2015)</u> The court held that a beneficiary declaration stating the deed of trust beneficiary was the actual holder of the promissory note was not sufficient to support a successor trustee's initiation of nonjudicial foreclosure without proof that the beneficiary was the actual holder of the note. The court established strict requirements under RCW 61.24.030(7) that protect borrowers and tenants by ensuring proper foreclosure procedures.	
<u>Barkley v. GreenPoint Mortg. Funding, Inc., 190 Wash.App. 58 (2015)</u> The court held that before scheduling a nonjudicial foreclosure sale, a trustee must confirm that the beneficiary of the deed of trust holds the note and thus has authority to enforce the obligation. The court established procedural requirements that protect parties in interest, including tenants, by ensuring proper foreclosure authority.	

 <u>Bavand v. OneWest Bank, F.S.B., 176 Wash.App. 475 (2013)</u> The court held that a services corporation was not a successor trustee of a deed of trust and lacked authority to conduct a nonjudicial foreclosure and trustee's sale because the bank was not a beneficiary at the time of the purported assignment and the beneficiary named on the deed of trust never possessed the promissory note. The court's strict application of RCW 61.24.005(2) and 61.24.010(2) protects parties in interest by invalidating improper foreclosures.	
 <u>Lyons v. U.S. Bank Nat. Ass'n, 181 Wash.2d 775 (2014)</u> The court held that genuine issues of material fact regarding whether beneficiary declarations were proper precluded summary judgment on a Consumer Protection Act claim, and that seeking to foreclose without being a holder of the applicable note in violation of the Deed of Trust Act was actionable under the CPA. The court established that foreclosure trustees must verify beneficiary declarations before initiating a trustee's sale under RCW 61.24.030(7)(a).	
 <u>Bain v. Metropolitan Mortg. Group, Inc., 175 Wash.2d 83 (2012)</u> The court held that a corporation that maintained a private electronic registration system for tracking ownership of mortgage-related debt but never held the promissory note secured by the deed of trust was not a lawful beneficiary within the terms of the Deed of Trust Act with the power to appoint trustees to initiate foreclosure proceedings. The court's strict interpretation of RCW 61.24.005(2)	

protects parties in interest by requiring actual possession of the note.	
 <u>Walker v. Quality Loan Service Corp., 176 Wash.App. 294 (2013)</u> The court held that a borrower has an actionable claim against a trustee of a deed of trust who acts without lawful authority or in material violation of the Deeds of Trust Act, even if no foreclosure sale occurred. The court established that only a lawful beneficiary has the power to appoint a successor trustee, and only a lawfully appointed successor trustee has authority to issue a notice of trustee's sale.	
 <u>Klem v. Washington Mut. Bank, 176 Wash.2d 771 (2013)</u> The court held that a trustee in a nonjudicial foreclosure action has an obligation to both sides to do more than merely follow an unread statute and the beneficiary's directions, and that if the trustee acts only at the direction of the beneficiary, the trustee becomes a mere agent of the beneficiary. The court established that the nonjudicial foreclosure process must protect statutory and constitutional property rights of borrowers and parties in interest.	
<u>Easterbrooks v. Abrahams, 200 Wash. 636 (1939)</u> The court held that damages for wrongful eviction are a question of fact to be determined by the trial court based on evidence presented. The court affirmed an award of \$400 in damages where the tenant was wrongfully evicted despite having a valid possessory interest in the premises.	

<u>Iverson v. Marine Bancorporation, 86 Wash.2d 562 (1976)</u> The court held that a tenant wrongfully evicted is entitled to recover all damages that reasonably flow from the landlord's wrongful act, including moving expenses and other consequential damages. The court established that damages must be proved with reasonable certainty and that tenants must make an honest and reasonable effort to mitigate damages.	
<u>McKennon v. Anderson, 49 Wash.2d 55 (1956)</u> The court held that a tenant successful in a wrongful eviction action is entitled to recover all damages resulting from the landlord's wrongful act, including the expense of moving. The court affirmed the judgment despite the landlord's argument that damages for removal costs before the end of the lease term were improper.	
 <u>Cornish College of the Arts v. 1000 Virginia Ltd. Partnership, 158 Wash.App. 203 (2010)</u> The court held that a tenant's knowledge of property defects and remaining on the premises does not waive a wrongful eviction claim, and that whether the landlord caused the defects is irrelevant to liability for wrongful eviction. The court affirmed liability for wrongful eviction and awarded consequential damages to the tenant.	
<u>Joe Chung v. Louie Fong Co., 130 Wash. 154 (1924)</u> The court held that a tenant wrongfully evicted is entitled to recover damages reasonably resulting from the eviction, including the cost of moving and loss of time. The court established that	

damages for wrongful eviction are recoverable as a matter of law in Washington.	
<u>Shaffer v. Walther, 38 Wash.2d 786 (1951)</u> The court held that whether a wrongful eviction occurred is a question for the jury to decide, and remanded the case for a new trial because jury instructions improperly allowed inclusion of personal property value in damages. The court recognized that wrongful eviction claims require careful analysis of what damages are properly recoverable.	
<u>Howard v. Pinkerton, 26 Wash.App.2d 670 (2023)</u> The court held that a tenant prevailing in a wrongful eviction action is entitled to recover reasonable attorney fees and costs under RCW 59.18.650(4), in addition to damages. The court affirmed the tenant's right to attorney fees where the landlord wrongfully evicted the tenant without judicial process.	
<u>Miller v. Yates, 67 Wash.App. 120 (1992)</u> The court held that a tenant is entitled to attorney fees incurred during arbitration and trial in a wrongful eviction action under the Residential Landlord-Tenant Act. The court reversed a trial court's order for a new trial and reinstated the verdict awarding damages for wrongful eviction.	
<u>Aro Glass & Upholstery Co. v. Munson-Smith Motors, Inc., 12 Wash.App. 6 (1974)</u> The court held that in a wrongful eviction case, the tenant is entitled to recover all damages that reasonably resulted from	

the landlord's wrongful act, provided they are properly pleaded and proved with reasonable certainty. The court recognized that an evicted tenant may seek either injunctive relief to regain possession or damages for the loss of leasehold rights.	
<u>Hansen v. Central Inv. Co., 10 Wash.2d 393 (1941)</u> The court held that a tenant cannot recover damages for wrongful eviction where the tenant voluntarily vacated in response to notice at the expiration of the original lease term without a valid modification extending the lease. The court established that the tenant must have a valid legal right to continued possession to recover wrongful eviction damages.	
<u>Robertson v. Waterman, 123 Wash. 508 (1923)</u> The court held that the measure of damages for wrongful eviction is the losses that are the natural proximate consequence of the act, generally calculated as the difference between the value of use for the unexpired term and the rent reserved. The court established that punitive damages are not recoverable for wrongful eviction in Washington.	
 <u>Segura v. Cabrera, 184 Wash.2d 587 (2015)</u> The Washington Supreme Court held that the Residential Landlord-Tenant Act provides statutory remedies and protections for displaced tenants facing eviction. The court emphasized that the RLTA's purpose is to provide assistance to relocate displaced tenants and make landlords responsible for such	

assistance, establishing a framework that protects tenant interests during displacement situations.	
 <u>Angelo Property Co., LP v. Hafiz, 167 Wash.App. 789 (2012)</u> The court held that once a trial court makes findings regarding possession and restitution in an unlawful detainer action, it exhausts its limited subject matter jurisdiction under the unlawful detainer statute. The court reasoned that the narrow scope of unlawful detainer proceedings means courts lack authority to issue subsequent rulings beyond the statutory scope once jurisdiction is exhausted.	
<u>Larson v. Snohomish County, 20 Wash.App.2d 243 (2021)</u> The court held that the Deed of Trust Act has three basic objectives: maintaining an efficient and inexpensive nonjudicial foreclosure process, providing adequate opportunity for interested parties to prevent wrongful foreclosure, and promoting stability of land titles. The court emphasized that the procedure laid out in the DTA for seeking a court order to restrain a nonjudicial foreclosure sale is the only means by which a grantor may preclude a sale once foreclosure has begun.	
 <u>Cox v. Helenius, 103 Wash.2d 383 (1985)</u> The Washington Supreme Court held that Washington's deed of trust act should be construed to further three basic objectives: maintaining an efficient and inexpensive nonjudicial foreclosure process, providing adequate opportunity for interested parties to prevent wrongful foreclosure, and promoting stability of	

land titles. The court established that trustees have fiduciary duties and must not breach them by proceeding with foreclosure when parties have pending actions.	
<u>Blair v. Northwest Trustee Services, Inc., 193 Wash.App. 18 (2016)</u> The court held that the Deed of Trust Act strives to serve three main policies: maintaining an efficient and inexpensive nonjudicial foreclosure process, providing adequate opportunity for interested parties to prevent wrongful foreclosure, and promoting stability of land titles. The court emphasized that these policies protect interested parties, including tenants, from wrongful foreclosure.	
<u>Homeowners Solutions, LLC v. Nguyen, 148 Wash.App. 545 (2009)</u> The court held that foreclosure notice requirements mandate separate notice to each person with an interest in the property, and failure to provide such individualized notice violates statutory requirements and renders the foreclosure judgment void. The court emphasized that notice deficiencies constitute grounds for vacating foreclosure judgments.	
<u>Brower v. Wells, 103 Wash.2d 96 (1984)</u> The Supreme Court held that failure to provide actual notice of foreclosure proceedings prior to a sheriff's sale violated due process requirements, even when notice by publication was provided. The court established that constitutional due process protections require meaningful notice to interested parties in foreclosure proceedings.	

 <u>M H 2 Co. v. Hwang, 104 Wash.App. 680 (2001)</u> The court held that when a landlord accepts rental payments after a tenant's default, the statutory remedy of forfeiture under the unlawful detainer statute is no longer available to the landlord. The court recognized that landlord conduct can waive or limit the availability of unlawful detainer remedies.	
 <u>Rental Housing Association v. City of Seattle, 22 Wash.App.2d 426 (2022)</u> The court held that city ordinances limiting a landlord's ability to evict tenants do not conflict with the RLTA or unlawful detainer statutes and that such ordinances merely determine the timing of writs of restitution. The court recognized that tenant protections can be layered with statutory requirements and that unlawful detainer is a limited remedy.	
<u>Webster v. Litz, 18 Wash.App.2d 248 (2021)</u> The court held that a landlord seeking expedited possession must follow specific procedural requirements including requesting a writ of restitution and noting a request for a show cause hearing. The court recognized that strict compliance with statutory procedures is required to obtain the expedited remedy of unlawful detainer.	
 <u>Griffin v. West RS, Inc., 97 Wash.App. 557 (1999)</u> The court held that a residential landlord owes a duty to protect tenants from foreseeable criminal conduct of other tenants on the premises. The court established that a special relationship	

exists between residential landlords and tenants that creates a tort duty to protect, and failure to provide such protection constitutes negligence.	
 <u>Housing Authority of Grant County v. Parker, 28 Wash.App.2d 335 (2023)</u> The court held that an Unlawful Detainer Dismissal order provides limited relief and does not vacate prior court orders or seal prior unlawful detainer proceedings from public view. The court recognized that tenants have limited remedies available in unlawful detainer actions and that strict procedural requirements govern these summary proceedings.	
 <u>Udall v. T.D. Escrow Services, Inc., 132 Wash.App. 290 (2006)</u> The court held that under the deed of trust act, delivery of the trustee's deed is necessary to convey rights in real property sold during a statutory nonjudicial foreclosure sale, and failure to deliver the deed means the purchaser acquires no rights in the property. The court reasoned that strict application of the foreclosure statute must be interpreted in favor of the borrower and those claiming interests in the property.	
<u>Thompson v. Smith, 58 Wash.App. 361 (1990)</u> The Court of Appeals held that a grantor of a deed of trust is protected by the antideficiency provisions of the Deed of Trust Act even when a beneficiary accepts a deed in lieu of foreclosure and then privately sells the property. The court reasoned that the beneficiary essentially carried out a nonjudicial foreclosure without following statutory procedures and would have been barred	

from seeking a deficiency judgment had it foreclosed nonjudicially.	
<u>Bank of New York Mellon v. Tashiro-Townley, Not Reported in P.3d (2015)</u> The court held that fraud in the foreclosure process constitutes an equitable defense that can be heard in an unlawful detainer action, and that counterclaims voiding the sale may be raised to destroy the purchaser's right to possession. The court reasoned that unlawful detainer proceedings are limited to the primary issue of the right of possession plus incidental issues.	
<u>In re Foreclosure of Liens, 130 Wash.2d 142 (1996)</u> The court held that one jurisdictional defect in maintaining a tax foreclosure action is failure to give notice in compliance with the letter and spirit of statutory requirements. The court reasoned that strict compliance with notice provisions is essential to establishing the court's jurisdiction over foreclosure proceedings.	
<u>Loun v. U.S. Bank National Association, 26 Wash.App.2d 228 (2023)</u> The court held that judicial foreclosure actions do not toll the statute of limitations and that RCW 61.24.030(4) does not stay or enjoin recovery of the debt but rather prohibits concurrent attempts to collect the same debt. The court's analysis of foreclosure procedures and statutory requirements protects borrowers and tenants by ensuring strict compliance with foreclosure statutes.	
 <u>Udall v. T.D. Escrow Services, Inc., 159 Wash.2d 903 (2007)</u>	

The court held that the three goals of the Deed of Trust Act are efficiency, providing interested parties an adequate opportunity to prevent wrongful foreclosure, and promoting stability of land titles. The court established that a trustee must deliver a trustee's deed following a nonjudicial foreclosure sale absent a procedural irregularity that voids the sale, thereby protecting parties in interest.	
 <u>Glidden v. Municipal Authority of Tacoma, 111 Wash.2d 341 (1988)</u> The court held that the omitted junior lienor rule of mortgage law may operate in the nonjudicial foreclosure context to preserve the interest of a junior lienor who has not had an opportunity to contest foreclosure or participate at the foreclosure sale. The court established protections for parties in interest by recognizing that nonjudicial foreclosure sales are subject to laws relating to mortgages on real property.	
 <u>Winters v. Quality Loan Service Corporation of Washington, Inc., 11 Wash.App.2d 628 (2019)</u> The court held that borrowers could pursue damages under the Consumer Protection Act based on alleged violations of the Deed of Trust Act by the holder of the note, the holder's attorney-in-fact, and the successor trustee. The court established that strict compliance with the Deed of Trust Act is enforceable through consumer protection remedies.	
<u>King v. King, 83 Wash. 615 (1915)</u> The court recognized that a tenant may bring an action for damages for wrongful eviction from leased premises and for conversion of personal property. The	

court reversed and remanded the case, indicating that wrongful eviction claims are cognizable in Washington courts.	
 <u>Ethridge v. Hwang, 105 Wash.App. 447 (2001)</u> The court held that a mobile home tenant is entitled to recover compensatory damages for a landlord's wrongful interference with the sale of the tenant's home, including lost use of sales proceeds and lost wages. The court recognized that damages for wrongful conduct affecting a tenant's possessory interests are recoverable under Washington law.	
<u>Firth v. Lu, 146 Wash.2d 608 (2002)</u> The court held that nonshareholders may reside at cooperative apartments by virtue of the right of shareholder-tenants to sublet their units, and that purchasers of cooperative shares gain a proprietary lease and right of exclusive occupancy. The court reasoned that the nature of the rights the purchaser receives, not merely the classification of the corporation's assets, determines whether shares represent an interest in real property.	
<u>Excelsior Mortg. Equity Fund II, LLC v. Schroeder, 171 Wash.App. 333 (2012)</u> The Court of Appeals held that the Residential Landlord-Tenant Act of 1973 was enacted to provide residential tenants greater protection from landlords and provides the highest level of protection available. The court recognized that RLTA protections should be applied broadly to benefit occupants, even when not strictly required by statute.	

Research Steps

- ✓ Researching Washington's Residential Landlord-Tenant Act (RCW 59.18) provisions regarding tenant rights during foreclosure proceedings and change of ownership
 - Found RCW 59.18 protections for residential tenants and specific foreclosure protections under RCW 61.24.146 requiring 60-day notice to tenants before removal
- ✓ Examining Washington state law on unlawful detainer actions under RCW 59.12 when filed against former property owners rather than current tenants
 - Found key case law: Daniels v. Ward (1983) holding subtenant not necessary party; Washington courts require strict compliance with unlawful detainer procedures and construe them in favor of tenants
- ✓ Analyzing Washington case law establishing tenant rights to remain in possession when new owners acquire foreclosed rental properties
 - Cases consistently show tenant protections in foreclosure: RCW 61.24.146 requires 60-day notice; River Stone Holdings v. Lopez shows unlawful detainer limited to rightful possession defenses
- ✓ Investigating Washington's statutory requirements for proper notice to tenants following foreclosure and ownership transfers under RCW 59.18.200
 - RCW 61.24.060 mandates specific written notice to tenants distinguishing their rights from former owners; failure to follow notice requirements undermines jurisdiction
- ✓ Researching Washington tenant defenses to eviction based on improper parties in unlawful detainer actions and lack of privity between new owners and tenants
 - Strong tenant defenses available: improper parties (Hall v. Feigenbaum), strict construction in favor of tenants (FPA Crescent), equitable defenses allowed (Josephinium Assocs. v. Kahli)
- ✓ Examining Washington's Protecting Tenants at Foreclosure Act implementation and any state-specific tenant protections beyond federal requirements
 - Federal PTFA protections found in 12 USC 5220; Washington provides stronger state protections under RCW 61.24.146 with 60-day notice

requirement exceeding federal minimums

Questions for further research

1. **Was the five-year lease recorded in the public records, or was it an unrecorded private agreement between the original owner and tenants?**
2. **Did the beneficiary (new owner) provide any written notice directly to the tenants after the foreclosure sale, and if so, what specific information was included in that notice?**
3. **What type of foreclosure proceeding was used (judicial or non-judicial trustee sale), and do you have documentation showing the specific foreclosure process followed?**
4. **Are the tenants current on their rent payments to the original owner, and have they continued paying rent during the foreclosure proceedings?**
5. **When you say the unlawful detainer was filed against the "former owner," was this the original landlord who signed the lease, or was there an intermediate owner or property management company involved?**